Republic of the Philippines
Province of Laguna
Municipality of Los Baños
Special Science and Nature City
OFFICE OF THE SANGGUNIANG BAYAN

BAGONG LOS BAÑOS
2/F Municipal Building
National Highway, Brgy. Timugan,
Los Baños, Laguna 4030, Philippines
Tel Nos. (049) 530-2818 loc. 201

EXCERPTS FROM THE MINUTES OF THE SEVENTH (7TH) REGULAR SESSION OF THE SANGGUNIANG BAYAN HELD ON FEBRUARY 17, 2025, AT THE SANGGUNIANG BAYAN SESSION HALL, NATIONAL HIGHWAY, BRGY. TIMUGAN, LOS BAÑOS, LAGUNA.

Present : S.B. Member Marlo PJ A. Alipon, Temporary Presiding Officer
S.B. Member Leren Mae M. Bautista
S.B. Member Jonathan Bryan S. Siytiap
S.B. Member Miko C. Pelegrina
S.B. Member Benedicto S. Alborida
S.B. Member Mike Dexter A. Concio
S.B. Member Jerwin A. Moliñawe
S.B. Member Muriel Laisa B. Dizon
Acting SK Federation President Anngela P. Eusebio
Ms. Dona T. Alborida-Dizon, Secretary to the Sangguniang Bayan
Ms. Donna Irish A. Concio, LLSA II

Absent : Vice Mayor Josephine H. Sumangil-Evangelista, O.B.
S.B. Member Gaudencio P. Macatangay, Liga President, O.B.

ORDINANCE NO. 2025 - 2417

AN ORDINANCE ENACTING THE NEW CHILDREN'S WELFARE CODE OF THE MUNICIPALITY OF LOS BAÑOS.

Author : Councilor Leren Mae M. Bautista

WHEREAS, the Local Government of Los Baños, Laguna believes that it is the responsibility of the government to harness the potential of children and youth and prepare them for their eventual roles in community development;

WHEREAS, it is incumbent upon the Local Government to protect the rights and privileges of children and youth to ensure a better future for them;

WHEREAS, it adheres to the mandate of the Philippine Constitution that recognizes the sanctity of family life and protects and strengthens the family as a basic autonomous social institution;

WHEREAS, it adopts the State's recognition of the vital role of the youth in nation-building, and shall promote and protect their physical, moral, spiritual, intellectual, and social well-being, inculcate nationalism in the youth and encourage their involvement in public and civic affairs;

WHEREAS, the needs and challenges faced by children are constantly evolving, requiring a review and update of existing local policies to effectively address emerging issues;

WHEREAS, recent national legislation has introduced significant advancements in the protection and promotion of children's rights, addressing various critical areas impacting their well-being;

WHEREAS, the Local Government of Los Baños recognizes the importance of aligning its local policies with these national mandates to ensure consistency and enhance the effectiveness of its programs and services for children;

WHEREAS, the Local Government of Los Baños acknowledges its responsibility to promote the well-being of children within its jurisdiction, and recognizes that periodic review and amendment of its Comprehensive Children's Welfare Code are essential to maintain its relevance, effectiveness, and responsiveness to the evolving needs of children, and to incorporate current best practices and legal standards;

NOW THEREFORE, on motion of Councilor Leren Mae M. Bautista, duly seconded by Councilor Mike Dexter A. Concio and approved by the Councilors present;

BE IT ORDAINED BY THE SANGGUNIANG BAYAN OF LOS BAÑOS, LAGUNA IN SESSION ASSEMBLED, THAT:

CHAPTER I

GENERAL PROVISIONS

ARTICLE 1

TITLE AND COVERAGE

SECTION 1. **TITLE** - This Ordinance shall be known as the "AN ORDINANCE ENACTING THE NEW CHILDREN'S WELFARE CODE OF THE MUNICIPALITY OF LOS BAÑOS".

SECTION 2. **COVERAGE** - This Code shall govern all objects situated within the territorial jurisdiction of Los Baños, specifically enumerated in its provisions, and all persons, entities or agencies involved in activities or related fields which are made subject of regulation by the provisions embodied in this Code.

ARTICLE 2

DECLARATION OF POLICY AND LEGAL BASIS

SECTION 3. **DECLARATION OF POLICY** - It is hereby declared to be the policy of the Local Government of Los Baños to be fully committed in the promotion of interests and development of children and the protection of their rights and privileges.

Towards this end, the Local Government acknowledges that:

(a) Children and youth play vital roles to play in society. Hence, their physical, spiritual, intellectual, moral, and social well-being should be fully developed and protected;
(b) Children and youth have equal rights to survival, development, protection and participation;
(c) All institutions, government or private, non-government organizations, civil society organizations and the church should work hand-in-hand in advancing the interests and welfare of the child and youth;

(d) The importance of inter-agency cooperation and partnerships among various stakeholders to effectively implement and uphold the provisions of national legislation outlined in this ordinance, thereby ensuring a holistic approach to child welfare and protection;
(e) The rights of children shall be of paramount consideration in all legislative and administrative policies, as well as in the programs and projects initiated by the Local Government of Los Baños. It is through such commitment that a nurturing and safe environment for children can be ensured; and
(f) It will continuously strive to enhance its programs and services in accordance with the evolving needs of children, integrating best practices grounded in child welfare acts to foster a supportive and enabling community for every child.

SECTION 4. **LEGAL BASIS** - This Code shall be governed by the provisions of the following Acts of the State:

(a) Presidential Decree No. 603, as amended – The Child and Youth Welfare Code;
(b) Republic Act No. 8044 – Youth in Nation-Building Act;
(c) Republic Act No. 6972 – Barangay Level Total Development and Protection of Children Act;
(d) Republic Act No. 7160 – The Local Government Code;
(e) Civil Code of the Philippines (Article 359 – 360) – Establishment of Councils for the Protection of Children;
(f) Executive Order No. 209 – Family Code of the Philippines, as amended;
(g) Republic Act No. 10354– The Responsible Parenthood and Reproductive Health Act of 2012;
(h) Republic Act No. 9288 – Newborn Screening Act of 2004;
(i) Executive Order No. 51 – The Milk Code of the Philippines;
(j) Republic Act No. 7600 – The Rooming-In and Breastfeeding Act of 1992;
(k) Republic Act No. 8976 – Food Fortification Law of the Philippines;
(l) Republic Act No. 8172 – An Act Promoting the Salt Iodization Nationwide;
(m) Republic Act No. 7624 – An Act Integrating Drug Prevention and Control in the Intermediate and Secondary Curricula;
(n) Republic Act No. 9262 – Anti-Violence Against Women and Their Children Act of 2004;
(o) Republic Act No. 7610 – The Special Protection of Children Against Abuse, Exploitation and Discrimination Act;
(p) Republic Act No. 9442 – Magna Carta for Disabled Persons and for Other Purposes;
(q) Batas Pambansa Blg. 344 – An Act to Enhance the Mobility of Disabled Persons by Requiring Certain Buildings, Institutions, Establishments, and Public Utilities to Install Facilities and other Devices;
(r) Presidential Decree No. 442 – Labor Code of the Philippines, as amended;
(s) Republic Act No. 7658 (as amended by Republic Act No. 9231) – An Act Prohibiting Employment of Children below Fifteen (15) Years of Age in Public and Private Undertakings;
(t) Republic Act No. 9208 – Anti-Trafficking Act of 2003;

(u) Republic Act No. 9775 – Anti-Child Pornography Act of 2009;
(v) Republic Act No. 10627 – Anti-Bullying Act of 2013;
(w) Republic Act No. 8049 – Anti-Hazing Law of 1995;
(x) Republic Act No. 9344 – Juvenile Justice and Welfare Act of 2006, as amended;
(y) Republic Act No. 7438 – An Act Defining Certain Rights of Person Arrested, Detained or Under Custodial Investigation as well as the Duties of the Arresting, Detaining and Investigating Officers, and Providing Penalties for Violations Thereof;
(z) Republic Act No. 8493 – An Act to Ensure a Speedy Trial of All Criminal Cases Before the Sandiganbayan, Regional Trial Court, Metropolitan Trial Court, Municipal Trial Court, and Municipal Circuit Trial Court, Appropriating Funds Therefor, and for Other Purposes;
(aa) Republic Act No. 9211 – Tobacco Regulation Act of 2003;
(bb) Republic Act No. 10821 – An Act Mandating the Provision of Emergency Relief and Protection for Children Before, During and After Disasters and other Emergency situations;
(cc) Republic Act 6972 – An Act Establishing a Day Care Center in Every Barangay, Instituting therein a Total Development and Protection of Children Program, Appropriating Funds Therefore, and For Other Purposes;
(dd) DepEd Order No.40, s.2012 – DepEd Child Protection Policy
(ee) Republic Act 9710 – An Act Providing for the Magna Carta of Women;
(ff) Republic Act 10679 – An act Promoting Entrepreneurship and Financial Education among Filipino Youth;
(gg) Republic Act No. 11037 – Masustansyang Pagkain para sa Batang Pilipino Act;
(hh) Republic Act No. 11036 – National Mental Health Policy;
(ii) Republic Act No. 10821 – Children's Emergency Relief and Protection Act;
(jj) Republic Act No. 10666 – Children's Safety on Motorcycles Act of 2015;
(kk) Republic Act No. 10410 – Early Years Act (EYA) of 2013;
(ll) Republic Act No. 9231 – Special Protection of Children Against Child Abuse, Exploitation and Discrimination Act;
(mm) Republic Act No. 11930 – Anti-Online Sexual Abuse or Exploitation of Children (OSAEC) and Anti-Child Sexual Abuse or Exploitation Materials (CSAEM);
(nn) Republic Act No. 11908 – The Parent Effectiveness Service Program Act;
(oo) Republic Act No. 11862 – Expanded Anti-Trafficking in Persons Act;
(pp) Republic Act No. 11767 – Foundling Recognition and Protection Act;
(qq) Republic Act No. 11650 – Instituting a Policy of Inclusion and Services for Learners with Disabilities in Support of Inclusive Education Act;
(rr) Republic Act No. 11648 – Stronger Protection Against Rape and Sexual Exploitation and Abuse;
(ss) Republic Act No. 11642 – Domestic Administrative Adoption and Alternative Child Care Act;
(tt) Republic Act No. 11596 – Anti-Child Marriage Law;
(uu) Republic Act No. 11510 – Alternative Learning System Act;
(vv) Republic Act No. 11313 – Safe Spaces Act;

(ww) Republic Act No. 11229 – Child Safety in Motor Vehicles Act;
(xx) Republic Act No. 11222 – Simulated Birth Rectification Act.

ARTICLE 3

DEFINITION OF TERMS

SECTION 5. **DEFINITION OF TERMS** - Words and phrases used in this Code shall be understood in the sense indicated hereunder:

(a) *"Abandoned child"* refers to a child who has no proper parental care or guardianship, a foundling, or one who has been deserted by one's parents for a period of at least three (3) continuous months, and has been declared as such by the NACC.

(b) *"Abandoned Filipino child in foreign country"* refers to an unregistered or undocumented child found outside the Philippine territory, with known or unknown facts of birth, separated from or deserted by the biological Filipino parent, guardian, or custodian for a period of at least three (3) continuous months and committed to a foreign orphanage or charitable institution, or placed in temporary informal care, and has been declared as such by the NACC, upon recommendation of the Office of the Social Welfare Attaché (OSWA) of the Department of Social Welfare and Development (DSWD), or the Department of Foreign Affairs (DFA).

(c) *"Academic-Focused Bridging Programs"* refers to ALS programs that provide continuing learning opportunities to accreditation and equivalency secondary level test passers who wish to better prepare for the academic demands and study skills requirements of tertiary level education or post-secondary vocational training, or both.

(d) *"Accreditation and Equivalency Assessments and Certifications (A&E Assessments and Certifications)"* shall refer to a process in ALS that comprise exams and other assessments deemed appropriate and anchored on the competencies of the ALS K to 12 BEC.

(e) *"Accreditation and Equivalency Program (A&E Program)"* shall refer to a program in ALS aimed at providing an alternative pathway of learning for out-of-school children in special cases and adults who have not completed basic education. Through this program, school dropouts are able to complete elementary and secondary education outside the formal school system.

(f) *"Addiction"* refers to a primary chronic relapsing disease of brain reward, motivation, memory, and related circuitry. Dysfunctions in the circuitry lead to characteristic biological, psychological, social, and spiritual manifestations. It is characterized by the inability to consistently abstain impairment and behavioral control, craving, diminished recognition of significant problems with one's behavior and interpersonal relationships and dysfunctional emotional response.

(g) *"Adoption"* refers to the socio-legal process that enables a child, who cannot be reared by his/her biological parents, to acquire legal status and benefit from new relationship with a permanent family;

(h) *"Adult"* refers to an individual who is above eighteen (18) years of age or have reached the majority age.

(i) *"Advertising"* shall refer to the business of conceptualizing, presenting, making available and communicating to the public, through any form of mass media, any fact, data or information about the attributes, features, quality or availability of consumer products, services or credit. For the purpose of this ordinance, advertising shall be understood as tobacco product advertising.

(j) *"Alternative Learning System (ALS)"* shall refer to a parallel learning system that provides a viable alternative to the existing formal education instruction. It encompasses both nonformal and informal sources of knowledge and skills.

(k) *"Alternative Learning System K to 12 Basic Education Curriculum (ALS K to 12 BEC)"* shall refer to the comprehensive curriculum indicating the competency, content, key stages, and standards for the ALS program under this Act. The ALS K to 12 BEC is benchmarked on the DepEd K to 12 formal school curriculum and focuses on the 21st Century Skills: information, media and technology skills, learning and innovation skills, communication skills, and life and career skills.

(l) *"Alternative Learning System Teachers (ALS Teachers)"* shall refer to DepEd employed teachers who implement the ALS programs.

(m) *"Alternative child care"* refers to the provision of planned substitute parental care to a child who is orphaned, abandoned, neglected, or surrendered by a child-caring or child-placing agency. This may include foster care, kinship care, family-like care, and residential care.

(n) *"Animal Cruelty"* refers to the intentional harm, neglect, or exploitation of animals.

(o) *"Basic Education"* refers to a program of instruction intended to meet the basic learning needs which provide the foundation on which subsequent learning can be based. It encompasses kindergarten, elementary and secondary education of all learners, including those with disabilities, as well as Alternative Learning Systems (ALS) as provided in Republic Act No. 11510, and Republic Act No. 10533, or the "Enhanced Basic Education Act of 2013."

(p) *"Basic Literacy Program"* shall refer to a program component of ALS that is aimed at eradicating illiteracy among out-of-school children in special cases and adults by developing basic literacy skills of reading, writing, numeracy, and simple comprehension.

(q) *"Bullying"* refers to any severe or repeated use by one or more students of a written, verbal or electronic expression, or a physical act or gesture, or any combination thereof, directed at another student that has the effect of actually causing or placing the latter in reasonable fear of physical or emotional harm or damage to his property, creating a hostile environment at school for the other student, infringing on the rights of other student at school, or materially and substantially disrupting the education process or the orderly operation of a school.

(r) *"Carer"* refers to the person, who may or may not be patient's next-of-kin or relative, who maintains a close personal relationship and manifests concern for the welfare of the patient.

(s) *"Catcalling"* refers to unwanted remarks directed towards a person, commonly done in the form of wolf-whistling and misogynistic, transphobic, homophobic, and sexist slurs.

(t) *"Certification Declaring a Child Legally Available for Adoption (CDCLAA)"* refers to a document issued by the Secretary of the Department of Social Welfare and Development (DSWD) or the Secretary's duly authorized representative as provided for by Republic Act No. 9523, otherwise known as "An Act Requiring Certification of the Department of Social Welfare and Development (DSWD) to Declare a 'Child Legally Available for Adoption' as a Prerequisite for Adoption Proceedings, Amending for this Purpose Certain Provisions of Republic Act No. 8552, otherwise known as the Domestic Adoption Act of 1998; Republic Act No. 8043, otherwise known as the Inter-Country Adoption Act of 1995; and Presidential Decree No. 603, otherwise known as the Child and Youth Welfare Code, and for Other Purposes," administratively declaring that a child is legally available for adoption which terminates the rights of the biological parents, guardian, or other custodian to exercise authority over the child upon issuance of the certificate.

(u) *"Child"* refers to a person below eighteen (18) years of age or one who is over but is unable to fully take care of or protect himself by reason of his physical or mental disability or condition.

(v) *"Child Abuse"* refers to an act that degrades or demeans the inherent worth and dignity of a child as a human being.

(w) *"Child-caring agency"* refers to a duly licensed and accredited agency by the DSWD that provides twenty-four (24)-hour residential care services for abandoned, orphaned, neglected, or voluntarily and involuntarily committed children.

(x) *"Child Development Center (CDCs)"* are the day care centers established in every barangay under Republic Act No. 6972 or the "Barangay-Level Total Development and Protection of Children Act" and converted to CDCs under Republic Act No. 10410. CDCs are implementing health, nutrition, early education, and social services development programs that provide for the basic holistic needs of learners with disabilities below five (5) years old to promote their optimum growth and development.

(y) *"Child Legally Available for Adoption (CLAA)"* refers to a child in whose favor a certification was issued by the NACC that such child is legally available for adoption after the fact of abandonment or neglect has been proven through the submission of pertinent documents, or one who was voluntarily committed by the child's parents or legal guardians.

(z) *"Child Neglect"* refers to the act of deliberately depriving the basic needs of a child.

(aa) *"Child Placement Committee (CPC)"* refers to the committee under the supervision of the Deputy Director for Services composed of a child psychiatrist or psychologist, a medical doctor, a lawyer, an adoption social worker, a representative of nongovernmental organization (NGO) engaged in child welfare, and any other professional as may be needed, to provide the necessary assistance in reviewing petitions for adoption.

(bb) *"Child-placing agency"* refers to a private nonprofit or charitable or government agency duly licensed and accredited agency by the DSWD to provide comprehensive child welfare services including receiving and processing of petitions for adoption and foster care, evaluating the prospective adoptive parents (PAPs) or foster parents, preparing the child case study report and home study report.

(cc) *"Child case study report"* refers to a written report prepared by an adoption social worker containing all the necessary information about a child, including the child's legal status, placement history, past and present biopsychosocial and spiritual aspects, case background, ethno-cultural background, and biological family background or history.

(dd) *"Confidentiality"* refers to ensuring that all relevant information related to persons with psychiatric, neurologic, and psychological health needs is kept safe from access or use by, or disclosure to, persons or entities who are not authorized to access, use, or possess such information.

(ee) *"Content data"* refers to the content of the communication, the meaning or purport of the communication, or the message or information being conveyed by the communication, other than traffic data, or subscriber's information/registration information.

(ff) *"Cycle Menu"* refers to standardized menus prepared by the national government agencies (NGAs), in coordination with the National Nutrition Council (NNC) and the Food and Nutrition Research Institute (FNRI), which shall be contextualized and drawn up, among others, according to age range, location and/or type of school, and local cultural and/or religious eating preferences: provided, that such menus shall have as many varieties and selections as may be necessary taking into account its availability in the place or locality where the day care center or school is located.

(gg) *"Deed of Voluntary Commitment (DVC)"* refers to the notarized instrument relinquishing parental authority and committing the child to the care and custody of the NACC or child-placing or child-caring agency, executed by the child's biological parents or by the child's legal guardian in their absence, mental incapacity or death, to be signed in the presence of an authorized representative of the NACC, after counseling and other services have been made available to encourage the child's biological parents or legal guardian to keep the child.

(hh) *"Deinstitutionalization"* refers to the process of transitioning service users, including persons with mental health conditions and psychosocial disabilities, from institutional and other segregated settings to community-based settings that enable social participation, recovery-based approaches to mental health, and individualized care in accordance with the service user's will and preference.

(ii) *"Disasters"* refer to a serious disruption of the functioning of a community or a society involving widespread human, material, economic, or environmental losses and impacts that exceed the ability of the affected community or society to cope using its own resources.

(jj) *"Discrimination"* refers to any distinction, exclusion, or restriction which has the purpose or effect of nullifying the recognition, enjoyment, or exercise, on an equal basis with others, of all human rights and fundamental freedoms in the political, economic, social, cultural, civil, or any other field. It includes all forms of discrimination, including denial of reasonable accommodation. Special measure solely to protect the rights or secure the advancement of persons with decision-making impairment capacity shall not be deemed to be discriminatory.

(kk) *"Drug Dependent"* refers to a person who is addicted to prohibited and regulated drugs.

(ll) *"Drug Rehabilitation"* refers to the processes of medical or psychotherapeutic treatment of dependency on psychoactive substances such as alcohol, prescription drugs, and other dangerous drugs pursuant to Republic Act 9165, Otherwise known as the "Comprehensive Dangerous Drugs Act of 2002." The rehabilitation process may also be applicable to diagnosed behavioral addictions such as gambling, internet, and sexual addictions. The general intent is to enable the patient to confront the psychological, legal, financial, social, and physical consequences. Treatment includes medication for co-morbid psychiatric or other medical disorders, counseling by experts, and sharing of experience with other addicted individuals.

(mm) *"Early Childhood Care and Development (ECCD) System"* shall refer to the full range of health, nutrition, early education, and social services development programs that provide for the basic holistic needs of young children from age zero (0) to four (4) years to promote their optimum growth and development; the State hereby recognizes the age from zero (0) to eight (8) years as the first crucial stage of educational development of which the age from zero (0) to four (4) years shall be the responsibility of the Early Childhood Care and Development (ECCD) Council.

(nn) *"ECCD Curriculum"* shall refer to the developmentally appropriate educational objectives and practices, programs of activities, organized learning experiences, recommended learning materials, and appropriate assessment for children from age zero (0) to four (4) years that are implemented by service providers through center and home-based programs. It shall consist of national programs goals and guidelines, instructional objectives, and content outlines that are age-appropriate, individually appropriate and culturally relevant.

(oo) *"ECCD Service Providers"* shall include the various professionals, paraprofessionals and volunteer caregivers who are directly responsible for the care and education of young children from age zero (0) to four (4) years through the various centers and home-based programs. They shall include, but shall not be limited to, day care workers hereinafter referred to as child development workers, child development teacher-aides, rural health, midwives, social workers, community health workers, barangay nutrition scholars, parent effectiveness service volunteers, and family day care providers.

(pp) *"Electronic Nicotine and Non-Nicotine Delivery Systems (ENDS/ENNDS)"* are combinations of non-tobacco containing e-liquids, solutions or refills which may or may not contain nicotine

and an electronic delivery device to produce aerosol, mist, or vapor that users inhale by mimicking the act of smoking. ENDS/ENNDS deliver nicotine and/or other chemicals to the lungs after one end of a plastic or metal cylinder is placed in the mouth, like a cigarette or cigar, and inhaled to draw a mixture of air and vapors from the device into the respiratory system. They contain electronic vaporization systems, rechargeable batteries and chargers, electronic controls and replaceable cartridges containing nicotine and/or other chemicals. They are also commonly known as electronic cigarettes (e-cigarettes), vapor products, vapes, vape pens, electronic shisha (e-shisha), mods, and other similar or related devices.

(qq) *"Emergency"* refers to an unforeseen or sudden occurrence, especially danger, demanding immediate action.

(rr) *"Family Tracing Reunification"* refers to the process where disaster response teams reunite families separated by natural and human catastrophes by bringing together the child and family or previous care provider for the purpose of establishing or re-establishing long-term care.

(ss) *"Foster Child"* refers to a child placed under foster care.

(tt) *"Foster Family"* refers to substitute parents who assume the duties of the biological parents, temporarily or permanently.

(uu) *"Foster Family Care"* refers to the provision of planned substitute parental care by a licensed foster family when biological parents are unable to care temporarily or permanently.

(vv) *"Foster Parent"* refers to a person, duly licensed by the NACC, to provide foster care.

(ww) *"Foundling"* refers to a deserted or abandoned child of unknown parentage and whose date or circumstances of birth on Philippine territory are unknown and undocumented. This shall also include those with the above circumstance of birth during their infancy and/or childhood, and have reached the age of majority without benefiting from adoption procedures.

(xx) *"Gender"* refers to a set of socially ascribed characteristics, norms, roles, attitudes, values, and expectations identifying the social behavior of men and women, and the relations between them.

(yy) *"Gender-based online sexual harassment"* refers to an online conduct targeted at a particular person that causes or likely to cause another mental, emotional or psychological distress, and fear of personal safety, sexual harassment acts including unwanted sexual remarks and comments, threats, uploading or sharing of one's photos without consent, video and audio recordings, cyberstalking, and online identity theft.

(zz) *"Gender identity and/or expression"* refers to the personal sense of identity as characterized, among others, by manner of clothing, inclinations, and behavior in relation to masculine or feminine conventions. A person may have a male or female identity with physiological characteristics of the opposite sex in which case this person is considered transgender.

(aaa) *"Grooming"* refers to predatory conduct, act, or pattern of acts, establishing a relationship of trust, or emotional connection by another with a child or someone who is believed to be a child, and/or the family, guardian, and/or caregivers, whether in person

or via electronic and other similar devices, for the purpose of perpetrating sexual abuse or exploitation or the production of any form of CSAEM.

(bbb) *"Hazard"* refers to a dangerous phenomenon, substance, human activity, or condition that may cause loss of life, injury, or other health impacts, property damage, loss of livelihood and services, social and economic disruption, or environmental damage.

(ccc) *"Health Examination"* refers to the examination conducted by NGAs, in coordination with the Department of Health (DOH) and local government units (LGUs) concerned, on the overall condition of the program beneficiary which shall, among others, include the program beneficiary's height, weight, and other ailments, defects or deformities that may need special care or treatment.

(ddd) *"Home study report"* refers to a written report prepared by an adoption social worker relative to the motivation and capacity of the prospective adoptive or foster parents to provide a home that meets the needs of a child.

(eee) *"Impairment or Temporary Loss of Decision-Making Capacity"* refers to a condition determined by medical professionals in which a person with a mental health issue is unable to provide informed consent. This occurs when, as evaluated by a mental health expert, the individual is incapable of performing specific tasks or making certain decisions.

(fff) *"Inclusive Education"* refers to the process of addressing and responding to the diversity of needs of all learners by moving towards the end goal of full participation, presence and achievement in learning cultures and communities, which involves accommodation, modification, adaptation, and individualization in content, approaches, structures, and strategies.

(ggg) *"Inclusive Learning Resource Center of Learners with Disabilities (ILRC)"* refers to a physical or virtual center that provides support and related services to teaching and learning, using appropriate, accessible, disability, linguistically-culturally, and gender-sensitive instructional learning materials, tools, devices, gadgets, and equipment to facilitate and enhance learning, and assessment tools and instruments, to evaluate developmental domains and specific areas of concern to determine appropriate services and placement decisions, with support and related services from medical, health, and allied professionals for care, rehabilitation, and development of learners with disabilities.

(hhh) *"Internet address"* refers to the uniform resource locator or internet protocol address of an internet site.

(iii) *"Internet asset"* includes internet site and any device that is engaged in peer-to-peer sharing of OSAEC and CSAEM.

(jjj) *"Internet café or kiosk"* refers to an establishment or any place or venue that offers or proposes to offer the use of its computer/s or computer system for the purpose of accessing the internet, computer games or related activities: provided, that for purposes of this Act, non-formal business establishments that provide internet services shall also be considered as internet café or kiosk.

(kkk) *"Internet service provider (ISP)"* refers to a public telecommunication entity (PTE) or value-added service (VAS) provider duly authorized by or registered with the National

Telecommunications Commission (NTC) that provides users or other entities with data connection allowing access to the internet through physical transport infrastructure, and such access is necessary for internet users to access content and services on the internet, and for content providers to publish or distribute materials online.

(lll) *"Learners with Disabilities"* refer to learners in general early and basic education system who require additional support and related services and adoptive pedagogic method due to their long or short-term physical, mental, intellectual or sensory impairments which in interaction with various barriers may hinder their full and effective participation in society on an equal basis with others to develop them to their maximum capability.

(mmm) *"Learning Facilitators"* refer to teachers financed by the private sector who implement ALS programs. The private sector shall include nongovernment organizations or associations, civil society organizations, or individuals.

(nnn) "Learning Support Aides" refer to qualified persons who work together in collaboration with special needs education teachers and para-teachers as defined in this Act, and contribute to the provision of services that promote achievement and progression of learners with disabilities. They may include those persons with experience in caring for learners with disabilities, graduates of a caregiving course under the Technical Educational and Skills Development Authority (TESDA) or its accredited schools or training centers, and graduates of senior high school with caregiving as his or her specialized subject.

(ooo) *"Liquor"* refers to any alcoholic beverage or drink which causes intoxication or drunkenness.

(ppp) *"Local Social Welfare Development Officer (LSWDO)"* refers to a person who is a duly licensed social worker and appointed by the local chief executive to head the provincial, city, or municipal social welfare development office which serves as the frontline of the local government unit (LGU) in the delivery of social welfare and development programs and services.

(qqq) *"Matching"* refers to the judicious selection from the regional or interregional levels of a family for a child based on the child's needs and best interest as well as the capability and commitment of the adoptive parents to provide such needs and promote a mutually satisfying parent-child relationship.

(rrr) *"Micro-certification"* also known as micro-credentialing, shall refer to a flexible means of certifying attainment of specific elements of ALS K to 12 minimum competencies which can be used by the holder as credential such as in job application, recruitment and selection.

(sss) *"Minors"* refers to persons below eighteen (18) years old who are prohibited in using, selling, distributing, marketing, advertising, promoting, or purchasing tobacco products, electronic nicotine delivery systems (ENDS), electronic non-nicotine delivery systems (ENNDS), heated tobacco products or their components within the territorial jurisdiction of the Municipality of Los Baños.

(ttt) *"Motorcycle"* refers to any two (2)-wheeled motor vehicles having one (1) or two (2) riding saddles.

(uuu) *"Neglected child"* refers to a child whose physical and emotional needs have been deliberately unattended or inadequately attended within a period of three (3) continuous months. A child is unattended when left without the proper provisions or proper supervision.

(vvv) *"Orphans and Orphaned Children"* refer to children who do not have a family and relatives who can assure responsibility for their care.

(www) *"Out-of-School Children in Special Cases"* refers to children in the official school age who are not enrolled in the elementary or secondary schools due to special cases such as economic, geographic, political, cultural or social barriers, including learners with disabilities or conditions, indigenous peoples, and other marginalized sectors.

(xxx) *"Parent"* refers to the natural and/or adoptive father and/or mother of a child.

(yyy) *"Person-in-charge"* refers to, in case of public places, public outdoor spaces, workplaces, and point-of-sale, the president/manager in case of a company, corporation, partnership or association, the owner/proprietor/operator in case of a single proprietorship, or the administrator in case of government property, facility, office or building; in case of public conveyances, the owner, driver, operator, conductor, or captain of the public conveyance; in case of schools or universities, the municipal schools superintendent, school president, dean or principal.

(zzz) *"Petition"* refers to the duly accomplished application form for the foster case or adoption, including the social case study report and its supporting documents from an authorized or accredited agency or central authority

(aaaa) *"Placement"* refers to the physical entrustment of the child with the foster parent or to the adoptive parents.

(bbbb) *"Post-adoption services"* refer to psychosocial services and support services provided by adoption social workers after the issuance of the Order of Adoption by the NACC or Final Decree of Adoption or its equivalent.

(cccc) *"Pre-Adoption Placement Authority (PAPA)"* refers to the matching committee organized by the NACC, through the RACCO, that is tasked to deliberate the regional and interregional matching of children legally available for adoption and approved prospective adoptive parents.

(dddd) *"Public Place"* refers to any place which is generally open to and used by the public, either publicly or privately owned, including but not limited to public buildings, markets, terminals, parks and plazas, national, provincial or municipal streets and alleys, and amusement centers such as entertainment centers.

(eeee) *"Public roads"* refer to roads designed by the national government or local government units for public use including but not limited to national highways, provincial roads, and municipal and barangay streets.

(ffff) *"Reasonable Accommodation"* refers to the necessary and appropriate modification and adjustments not imposing a disproportionate or undue burden, where needed in a particular case, to ensure learners with disabilities the enjoyment or

exercise on an equal basis with others of all human rights and fundamental freedoms including their right to quality education.

(gggg) *"Relative"* refers to someone other than family members, within the fourth (4th) degree of consanguinity or affinity.

(hhhh) *"Rider"* refers to the driver of a motorcycle.

(iiii) *"Separated Children"* refer to children separated from both parents, or from their previous legal or usual primary caregiver, but not necessarily from other relatives. As a result, this may include children accompanied by other family members.

(jjjj) *"Sexual activity"* includes the following acts, whether actually performed or simulated:

1. Sexual intercourse or lascivious act, including contact involving the genitalia, oral stimulation of the genitals or oral stimulation of the anus, whether between persons of the same or opposite sex.
2. Masturbation
3. Sadistic or masochistic abuse
4. Lascivious exhibition of the genitals, buttocks, breasts, pubic area and anus
5. Bestiality
6. Use of any object or instrument for lascivious acts
7. Any other analogous circumstance.

(kkkk) *"Sexual Abuse"* refers to the involvement of a child or youth in sexual activity with an adult or any older person, in which the child is used as sexual object for gratification of the older person's needs or desire such as rape, attempted rape, statutory rape, incest or acts of lasciviousness.

(llll) *"Sexual Exploitation"* refers to the participation of a person or a child or youth in prostitution or the production of pornographic materials as a result of being subjected to threat, deception, coercion, abduction, force, abuse of authority, fraud or abuse of victim's vulnerability.

(mmmm) *"Smoking"* means being in possession or control of a lit tobacco product regardless of whether or not the smoke or emission is being actively inhaled or exhaled.

(nnnn) *"Social case study report"* refers to the report prepared by the adoption social worker on the PAP's capacity to raise the child; the social agency efforts to locate the child's biological parents or relatives; interventions given to the child and the family; and the adoption social worker's assessment of the case. It shall include both the child case study report and the home study

(oooo) *"Social worker"* refers to a licensed practitioner by the PRC who, by academic training and social work professional experience, possesses the skill to achieve the objectives as defined and set by the social work profession, through the use of the basic methods and technique of social work (case work, group work, and community organization) which are designed to enable individuals, groups and communities to meet their needs and to solve the problems of adjustment to a changing pattern of society and, through coordination with an organized social work agency which is supported partially or wholly from government or community solicited funds.

(pppp) *"Special Needs Education"* refers to the customized instructional program or service designed to meet the diverse needs of an individual with disability, which may necessitate supplementary aids and services and teaching strategies in the classroom or non-academic settings. They include instructions on physical and vocational education, social skills development, and basic survival needs, and providing reasonable accommodations, modifications, adaptations, and individualization, as needed. It includes learners with disabilities in the general education system to enable them to realize their full potential and prepare them as independent functioning members of society. The term "Special Needs Education" shall replace the term "Special Education (SPED)."

(qqqq) *"Supervised trial custody (STC)"* refers to the period of time after the placement of a child in an adoptive home whereby an adoption social worker helps the adoptive family and the child in the adjustment process to facilitate the legal union through adoption.

(rrrr) *"Support"* refers to everything indispensable for the full and harmonious development of the child, including sustenance, dwelling, clothing, medical attention, and education, in keeping with the financial capacity of the family.

(ssss) *"Tobacco Products"* means products entirely or partly made of the leaf tobacco as raw material which are manufactured to be used for smoking, heating, sucking, chewing, or snuffing, such as but not limited to cigarette, cigar, pipe, shisha/hookah, and chew tobacco. This includes ENDS/ENNDS, heated and smokeless tobacco products, and novel tobacco products, and related consumer products.

(tttt) *"Transitional Shelter"* refers to structures temporarily constructed by the government intended for families affected by a disaster while awaiting transfer to permanent shelters.

(uuuu) *"Undernourished Child"* refers to a child who has been supplied with less than the minimum amount of foods essential for sound health and growth.

(vvvv) *"Unaccompanied Children"* refer to children who have been separated from both parents and other relatives, and who are not being cared for by an adult who, by law or custom, is responsible for doing so.

(wwww) *"Vaping"* refers to being in possession or control of a powered ENDS/ENNDS or HTP, regardless of whether the emission in the form of smoke, vapor, or aerosol is being actively inhaled or exhaled.

(xxxx) *"Voluntarily committed child"* refers to the one whose parent or legal guardian knowingly and willingly relinquished parental authority to the NACC, the DSWD, or any duly accredited child-placing or child-caring agency or institution.

(yyyy) *"Youth"* refers to persons whose ages range from fifteen (15) to thirty (30) years old.

ARTICLE 4

RULES OF INTERPRETATION AND CONSTRUCTION

SECTION 6. If the provisions of the different articles are in conflict with or contravene each other, the provision of each article shall prevail as to all specific matters and questions involved therein.

SECTION 7. The provisions of this Code, which are substantially the same as the previous or existing ordinances particularly when dealing with the same subject matter, shall be construed as "restatement" and not as "new enactments" except for the amended, corrected or deleted words, phrases and paragraphs.

SECTION 8. Any amendment to this Code maybe introduced and shall be compiled in such a way as to bear the corresponding article and section to which such ordinance pertains. Such new provision shall be integrated into the corresponding article or section whenever a new printing or reproduction of this Code is undertaken upon authorization of the Sangguniang Bayan.

SECTION 9. Any provision of this Code which maybe ambiguous or vague shall be reasonably construed in a manner that gives effect to the purpose for which this Code or the specific article has been enacted.

ARTICLE 5

GENERAL OBJECTIVES

SECTION 10. **GENERAL OBJECTIVES** - To establish milestone for monitoring and evaluation of the progress towards creating conditions that help children and their family develop full potential, the following general objectives shall be the basic foundation in order to establish a comprehensive system for children, youth and family welfare and development:

(a) Child Health:

(1) All children are registered at birth;
(2) All infants are exclusively breastfed for up to 6 months;
(3) All children are fully immunized against Tuberculosis, Diphtheria/Pertussis/Tetanus, Polio, Hepatitis B, HiB, and Measles before reaching one year old;
(4) All children aged 0-2 years old are weighed monthly, and mothers are counseled on health, nutrition, and psychosocial care;
(5) All children are well-nourished;

(6) All children aged 1-5 years old are given Vitamin A capsules and are dewormed; and
(7) All children undergo newborn screening.

(b) Maternal Health:

(1) All fetuses are protected from intentional/illegal abortion;
(2) All births are attended by trained personnel;

(3) All pregnant women receive at least four pre-natal checkups;
(4) All mothers are immunized against Tetanus;
(5) All pregnant or lactating women are sufficient in Vitamin A and are not anemic;
(6) All pregnant women who are at risk are given appropriate emergency obstetric care;
(7) All pregnancies are spaced at least two years apart;
(8) All pregnant mothers are attended by trained health professionals at health facilities; and
(9) All new mothers are given post-natal care.

(c) Education:

(1) All children aged 3-5 years old attend early education programs;
(2) All children aged 6-18 years old are in school and completed high school;
(3) All out-of-school-children are identified and reinstated, or provided alternative education; and
(4) All illiterate parents and caregivers/guardians are enrolled in functional literacy programs such as, but not limited to, "Balik-Paaralan" and "Out-of-School-Adults" programs.

(d) Special Protection:

(1) Abused, exploited and children victims of hard and/or hazardous labor, prostitution and pornography should be rescued by a social worker or his/her representative; and
(2) All cases of physical and sexual abuse and violence are eliminated in the home and community.

(e) Amenities for the Welfare of Children:

(1) Safe drinking water;
(2) Sanitary latrines;
(3) Child care placement centers; and
(4) Playgrounds.

(f) Child Participation:

(1) Children of all ages are allowed by their families to choose/participate in any legitimate religious, socio-cultural and community development activities.

The Local Government of Los Baños shall establish programs and projects and appropriate sufficient resources in relation hereof. It may accept donations, grants, financial assistance or any means of support as allowed under existing laws, from national or international government or non-government institutions and/or private sectors to ensure the efficacy of implementing this Code with the end that the survival and development of the child is achieved.

CHAPTER II

RIGHTS OF A CHILD

SECTION 11. The Local Government of Los Baños shall endeavor to protect the rights of a child as set forth herein, regardless of legitimacy, sex, social status, religion, political affiliation and other factors.

(a) Survival Rights - Right to life, adequate standard of living, health, and parental care.
(b) Developmental Rights - Right to education, leisure, and access to cultural and artistic activities.
(c) Participation Rights - Right to freedom of expression, opinion, and association.
(d) Protection Rights - Right to protection against abuse, exploitation, neglect, and all forms of violence.

ARTICLE 6

SURVIVAL RIGHTS

SECTION 12. **RIGHT TO LIFE** - Every child has the inherent right to life. The Local Government shall ensure, to the maximum extent possible, to endow a child with dignity and worth of a human being from the time of his/her conception and protect his/her right to be born well.

SECTION 13. **RIGHT TO ADEQUATE STANDARD OF LIVING** - Every child has the right to a standard of living adequate for his/her physical, intellectual, spiritual, moral and social development. To this end, the child shall be provided with balanced diet, adequate clothing, sufficient shelter, proper medical attention and all the basic physical requirements to a healthy and vigorous life.

SECTION 14. **RIGHT TO HEALTH** - Every child has the right to the highest standard of health and medical care possible.

SECTION 15. **RIGHT TO PARENTAL CARE AND SUPPORT** - Every child has the right to a wholesome family life that provides love, care, understanding, guidance, counseling, and both moral and material security. The Local Government shall ensure that the child is well cared for and supported by his/her parents, unless deemed incompatible with the child's best interest.

An orphaned or abandoned child shall be provided with the nearest substitute for a home.

SECTION 16. **RIGHT TO A NAME, NATIONALITY AND IDENTITY** - Every child has the right to be registered immediately at birth and shall have the right, from birth, to a name, to acquire a nationality, and, as far as possible, to know his/her parents and be cared for by them. The child also has the right to preserve his/her identity, including nationality, name, and family relations.

ARTICLE 7

DEVELOPMENTAL RIGHTS

SECTION 17. **RIGHT TO INFORMATION** - Every child has the right to appropriate information on matters of interest to him/her, especially, those aimed at the promotion of his/her social, spiritual and moral well-being and physical and mental health.

SECTION 18. **RIGHT TO LEISURE, RECREATIONAL AND CULTURAL ACTIVITIES** - Every child has the right to rest and leisure, to engage in play and safe, and wholesome recreational activities appropriate to his/her age, and to participate freely in cultural life and arts.

SECTION 19. **RIGHT TO EDUCATION** - Every child has the right to education. This right shall include the right to avail of Early Childhood Care and Development (ECCD) programs, primary, secondary, and tertiary education, appropriate to the evolving capabilities of the child.

(a) The gifted child shall be given opportunity and encouragement to develop his/her special talents and skills.
(b) The emotionally disturbed or socially maladjusted child shall be treated with sympathy and understanding and shall be entitled to treatment and competent care.
(c) The physically or mentally handicapped child shall be given the treatment, education and care required by his/her particular condition.

ARTICLE 8

PARTICIPATION RIGHTS

SECTION 20. **RIGHT TO OPINION** - Every child, who is capable of forming his/her views, has the right to express those views freely in all matters affecting him/her.

Such views shall be heard and given due consideration in accordance with the age and maturity of the child and in the formulation of plans and programs for his/her welfare.

SECTION 21. **RIGHT TO FREEDOM OF EXPRESSION** - Every child has the right to express his/her views and ideas, obtain all kinds of information, not otherwise pornographic, libelous or subversive, either orally, in writing or in print, in the form of visual arts, or any other form of media of the child's choice.

SECTION 22. **RIGHT TO FREEDOM OF THOUGHT** - Conscience and Religion. Every child has the right to freedom of thought, conscience and religion, subject to appropriate guidance by the parents and/or guardians.

SECTION 23. **RIGHT TO ENJOY AND PRACTICE HIS/HER OWN CULTURE, RELIGION AND LANGUAGE** - Every child from minority communities or indigenous people has the right to exercise and enjoy his/her own culture, profess and practice his/her own religion and to speak or write in his/her own language.

The child shall exercise the right within the boundaries of respect and courtesy to other cultures, religions and languages. Likewise, such right shall be exercised within the bounds of national security, public order, public health and morals.

SECTION 24. **RIGHT TO FREEDOM OF ASSOCIATION** - Every child has the right to meet other persons, and to organize, form or join associations and to freedom of assembly. Such right shall be exercised within the bounds of national security, public order, public health and morals.

SECTION 25. **RIGHT TO PRIVACY** - Every child shall have the right to protection from interference of his/her privacy, family, home and correspondence, unless otherwise the safety and security of the child, the family and the community is threatened.

ARTICLE 9

PROTECTION RIGHTS

SECTION 26. **RIGHT TO PROTECTION AGAINST PHYSICAL ABUSE** - Every child has the right to protection against physical, mental, psychological or emotional abuse, violence, injury or maltreatment.

SECTION 27. **RIGHT TO PROTECTION AGAINST SEXUAL ABUSE** - Every child has the right to protection against rape, incest, sexual harassment, acts of lasciviousness, seduction, abduction and other forms of sexual abuse and violence.

SECTION 28. **RIGHT TO PROTECTION AGAINST NEGLECT AND ABANDONMENT** - Every child has the right to quality care by his/her parents/guardians and to be protected against their neglect, negligent treatment and abandonment.

SECTION 29. **RIGHT TO BE PROTECTED FROM ILLEGAL DRUGS, CIGAR, CIGARETTE, LIQUOR, INTOXICATING BEVERAGES AND OTHER ADDICTIVE SUBSTANCES** - Every child has the right to be protected from the use of, and exposure to, narcotic and psychotropic drugs, cigar, cigarette, liquor, intoxicating beverages, volatile substances and from being involved in their production or distribution.

SECTION 30. **RIGHT TO PERIODIC REVIEW OF TREATMENT IF PLACED UNDER PROTECTIVE CUSTODY** - Every child has the right to be protected from any type of harm or harsh treatment. The government has the mandate to closely monitor and review the treatment of the child under the care of his/her custodian.

SECTION 31. **RIGHT TO SPECIAL PROTECTION OF A DIFFERENTLY-ABLED CHILD** - Differently-abled child has the right to special care, education and training to help him/her enjoy a full and decent life in dignity and to achieve the greatest degree of self-reliance and social integration possible.

SECTION 32. **RIGHT OF CHILD IN CONFLICT WITH THE LAW (CICL)** - Every child, who comes in conflict with the law, shall be entitled to the following rights:

(a) To be treated with dignity and in a manner consistent with the promotion of the child's sense of dignity and worth, which reinforces the child's respect for the human rights and fundamental reasons of others;
(b) To be presumed innocent until proven guilty according to law;
(c) To have the free assistance of an interpreter if the child cannot understand or speak the language used; and
(d) To be informed of his/her rights under the United Nations Convention on the Rights of the Child (UNCRC) and other international instruments in relation to CICL, R.A. 7438, R.A. 8493, P.D. 603 and the Rules and Regulations on the Apprehension, Investigation, Prosecution and Rehabilitation of Youth Offenders.

SECTION 33. **RIGHT TO BE PROTECTED FROM WORK EXPLOITATION** - Every Child shall have the right to be protected from economic exploitation and from performing any work that is likely to be hazardous or interfere with the child's health or physical, mental, spiritual, moral or social development in relation to R.A. 7658, as amended by R.A. 9231.

SECTION 34. **RIGHT TO BE PROTECTED AGAINST ALL FORMS OF COMMERCIAL SEXUAL EXPLOITATION** - Every child shall have the right to be protected from child prostitution, child pornography, child sex tourism and other forms of commercial sexual exploitation, as provided for under R.A. 9208 and R.A. 7610.

SECTION 35. **RIGHT TO BE PROTECTED AGAINST BULLYING** - Every child shall have the right to be protected from bullying, as provided for under R.A. 10627.

SECTION 36. **RIGHT TO BE PROTECTED AGAINST HAZING** - Every child shall have the right to be protected from hazing, as provided for under R.A. 8049.

SECTION 37. **RIGHT TO BE PROTECTED FROM OTHER FORMS OF EXPLOITATION** - Every child shall have the right to be free and to be protected from all other forms of exploitation prejudicial to any aspects of the child's welfare.

CHAPTER III

COMMUNITY-BASED SUPPORT SYSTEM

ARTICLE 10

ROLES AND FUNCTIONS OF THE FAMILY, INSTITUTIONS AND THE COMMUNITY

SECTION 38. **THE FAMILY** - The Local Government of Los Baños recognizes the family as the central unit responsible for most of the child's early education

and development including the molding of character, physical, emotional and spiritual progress and the realization of the child's existence as dignified human being with the recognition of his/her inherent rights. Introduction of the child to the culture, values and norms of the society shall begin in the family.

The family has the primary responsibility of nurturing and protecting the child from infancy to adolescence. Article 15, Section 1 of the Philippine Constitution states that, "The State recognizes the Filipino family as the foundation of the nation. Accordingly, it shall strengthen its solidarity and actively promote its total development".

Government and the social efforts to preserve the integrity of the family, including extended family shall be pursued. The family is a basic social institution which public policy cherishes and protects (Title VII, Chapter 1, Article 216 of the Civil Code of the Philippines).

SECTION 39. **PRIMARY RIGHTS OF PARENTS** - The parents shall have the right to the company of their children and, in relation to all other persons or institutions dealing with the children's development, the primary right and obligation to provide for their upbringing.

(a) Rights under the Civil Code. Parents shall continue to exercise the rights mentioned in Articles 316 to 326 of the Civil Code over the person and property of the child.
(b) Right to Discipline Child. Parents shall have the right to discipline the child as may be necessary for the formation of his/her good character, and may therefore require from him/her obedience to just and reasonable rules, suggestions and admonitions.

SECTION 40. **GENERAL DUTIES OF PARENTS** - Parents shall have the following general duties toward their children:

(a) To give them affection, companionship and understanding;
(b) To extend to them the benefits of moral guidance, self-discipline and religious instruction;
(c) To supervise their activities, including their recreation;
(d) To inculcate in them the value of industry, thrift and self-reliance;
(e) To stimulate their interest in civic affairs, teach them the duties of citizenship, and develop their commitment to the country;
(f) To advise them properly on any matter affecting their development and well-being;
(g) To always set a good example;
(h) To provide them with adequate support, as defined in Article 290 of the Civil Code; and
(i) To administer their property, if any, according to their best interests, subject to the provisions of Article 320 of the Civil Code.

SECTION 41. **FAMILY AFFAIRS** - Whenever proper, parents shall allow the child to participate in the discussion of family affairs, especially in matters that particularly concern him/her. In cases involving his/her discipline, the child shall be given a chance to present his/her side.

(a) Winning Child's Confidence. Parents shall endeavor to win the child's confidence and to encourage him/her to conduct with them on his/her activities and problems.
(b) Child Living Away from Home. If by reason of his/her studies or for other causes, a child does not live with his/her parents, the latter shall communicate with him/her regularly and visit him/her as often as possible. The parents shall see to it that the child lives in a safe and wholesome place and under responsible adult care and supervision.
(c) Special Talents. Parents shall endeavor to discover the child's talents or aptitudes, if any, and to encourage and develop them.
(d) If the child is especially gifted, the parents shall report this fact to the Philippine Center for Gifted Education or to other agencies concerned so that official assistance or recognition may be extended to him/her.
(e) Reading Habit. The reading habit should be cultivated in the home. Parents shall, whenever possible, provide the child with good and wholesome reading materials, taking into consideration his/her age and emotional development. They shall guard against the introduction in the home of pornographic and other unwholesome publications.
(f) Association with Other Children. Parents shall encourage the child to associate with other children of his/her own age with whom he/she
(g) can develop common interests of useful and salutary nature. It shall be their duty to know the child's friends and their activities and to prevent him/her from falling into bad company. The child should not be allowed to stay out late at night to the detriment of his/her health, studies or morals.
(h) Community Activities. Parents shall give the child every opportunity to form or join social, cultural, educational, recreational, civic or religious organizations or movements and other useful community activities.
(i) Social Gatherings. When a party or gathering is held, the parents or a responsible person should be present to supervise the same.
(j) Vices. Parents shall take special care to prevent the child from becoming addicted to intoxicating drinks, narcotic drugs, smoking, gambling, and other vices or harmful practices.
(k) Choice of career. The child shall have the right to choose his/her own career. Parents may advise him/her on this matter but should not impose on him/her their own choice.
(l) Marriage. Subject to the provisions of the Civil Code, the child shall have the prerogative of choosing his/her future spouse. Parents should not force or unduly influence him/her to marry a person he/she has not freely chosen.

SECTION 42. **LIABILITIES OF PARENTS -** Parents and guardians are responsible for the damage caused by the child under their parental authority in accordance with the Civil Code. There is criminal liability for any parent who does the following acts:

(a) Conceals or abandons the child with intent to make such child lose his/her civil status;
(b) Abandons the child under such circumstances as to deprive him/her of the love, care and protection he/she needs;
(c) Sells or abandons the child to another person for valuable consideration;

(d) Neglects the child by not giving him/her the education which the family's station in life and financial conditions permit;
(e) Causes, abates, or permits the truancy of the child from the school where he/she is enrolled. "Truancy" as here used means absence without cause for more than twenty school days, not necessarily consecutive. It shall be the duty of the teacher in charge to report to the parents the absences of the child the moment these exceed five school days;
(f) Improperly exploits the child by using him/her, directly or indirectly, such as for purposes of begging and other acts which are inimical to his/her interest and welfare;
(g) Inflicts cruel and unusual punishment upon the child or deliberately subjects him/her to indignations and other excessive chastisement that embarrasses or humiliates him/her.
(h) Causes or encourages the child to lead an immoral or dissolute life;
(i) Permits the child to possess, handle or carry a deadly weapon, regardless of its ownership; and,
(j) Allows or requires the child to drive without a license or with a license which the parent knows to have been illegally procured. If the motor vehicle driven by the child belongs to the parent, it shall be presumed that the parent permitted or ordered the child to drive.

SECTION 43. **DUTIES OF THE COMMUNITY** - To ensure the full enjoyment of the right of every child to live in a society that offers or guarantee him/her safety, health, good moral environment and facilities for his/her wholesome growth and development, it shall be the duty of the community to:

(a) Bring about a healthy environment necessary to the normal growth of children and the enhancement of their physical, mental and spiritual well-being;
(b) Help institutions of learning, whether public or private, achieve the fundamental objectives of education;
(c) Organize or encourage movements and activities, for the furtherance of the interests of children;
(d) Promote the establishment and maintenance of adequately equipped playgrounds, parks, and other recreational facilities;
(e) Support parent education programs by encouraging its members to attend and actively participate therein;
(f) Assist the State in combating and curtailing juvenile delinquency and in rehabilitating wayward children;
(g) Aid in carrying out special projects for the betterment of children in remote areas or belonging to cultural minorities or those who are out of school;
(h) Cooperate with private and public child welfare agencies in providing care, training and protection to destitute, abandoned, neglected, abused, handicapped and disturbed children; and
(i) Report, in writing or verbally to the Department of Social Welfare and Development (DSWD), police or other law enforcement agency in accordance with R. A. 7610, the facts or circumstances that give rise to a belief that a child has suffered from any form of abuse.

SECTION 44. **RESPONSIBILITY OF SCHOOLS AND OTHER EDUCATIONAL INSTITUTIONS** - In addition to the role of all educational institutions to impart knowledge and skills to their students, they shall likewise institute programs and services that will include proper values formation.

(a) Educational institutions, from the primary to the tertiary level, shall provide creative, innovative and appropriate recreational, cultural and artistic activities to develop the child's full potentials and talents. They shall incorporate into their curriculum a subject on the rights and responsibilities of children, subject to guidelines set by the Department of Education (DepEd) and the Commission on Higher Education (CHED).

(b) All educational institutions shall maintain quality education and use child-friendly methods in teaching the child.

(c) All educational institutions shall ensure the safety of children within and outside school premises during school hours and authorized school activities. This shall include discouraging the students from patronizing non-nutritional food products sold within and outside school premises during school hours and from joining or participating in gang-style group activities.

(d) All educational institutions shall give their full support to student body organizations. The school administration shall conduct periodic consultations with students regarding matters affecting their students. The student representatives shall be elected by the student body to sit in Parent-Teacher Councils (PTC) and other recommendatory and

(e) decision-making bodies in the school. Parents – Teachers Association shall aid the local authorities and school officials in the enforcement of juvenile delinquency control measures, and in the implementation of programs and activities to promote child welfare.

(f) Public and private educational institutions shall not discriminate against differently-abled children in enrolment and admission. As much as possible, they shall provide special classes for differently-abled children.

(f) Educational institutions shall work together with parents, community organizations and agencies concerned with the activities of children.

SECTION 45. **ROLE OF CHURCHES** - All churches and religious orders, congregations or groups may, conformably to law, establish programs for the purpose of educating children in accordance with the tenets of their religion, to inculcate in the children a strong spiritual foundation, fear of the Lord, consciousness on moral standards they have to follow, love and service for others.

Parents shall admonish their children to heed the teachings of their Church and to perform their religious duties. Whenever possible, parents shall accompany their children to the regular devotions of their Church and other religious ceremonies. This will foster strong family ties and harmony.

SECTION 46. **ROLE OF PEOPLE'S ORGANIZATIONS, NON-GOVERNMENT ORGANIZATIONS, AND CIVIL SOCIETY ORGANIZATIONS** - People's Organizations, Non-Government Organizations and Civil Society Organizations shall work for the common good of the people around them, particularly in helping children and protecting them in the enjoyment of their rights, and their own lives as well.

SECTION 47. **ROLE OF WOMEN** - Women in their various roles play a critical role in the well-being of children. Efforts for the enhancement of women's status and their roles in the development must begin with female children. The enhancement of the status of women and their equal access to education, training, credit, reproductive health, and other extension services constitutes a valuable contribution to nation's social and economic development.

To achieve and to prepare women for their various roles, equal opportunity shall be provided for the female children for them to benefit from the health, nutrition, education and other basic services for their full growth.

SECTION 48. **ROLE OF JUDICIAL INSTITUTIONS** - In the administration of justice, courts, prosecutors and other actors shall ensure that the rights of children are protected and promoted at all times. They shall conduct programs and activities geared towards enhancing children's rights.

SECTION 49. **ROLE OF MASS MEDIA** - The mass media shall be aware of their extensive social role and responsibility as well as their influence in communications relating to children. They should use their power to protect the rights of children by relaying constant messages through various mediums of communication such as Print, Radio, Television and Internet through a balanced approach. Media shall refrain from showing any form of violent and pornographic materials. They shall endeavor to show wholesome and educational materials during prime time viewing. Special attention should be given to effective anti-drug awareness campaigns and delinquency prevention.

SECTION 50. **ROLE OF THE PRIVATE SECTOR** - The private business sector shall adhere to the following:

(a) The private business sector, particularly those who have direct contact with the child, have a corporate social responsibility to all children. The conduct of their business should consider the best interest of the child;
(b) The private business sector is encouraged to become involved and to support programs, projects and services for children, especially those provided in this Code;
(c) Bookstores, libraries, internet cafés and other sources of information shall ensure that children have access to information appropriate to their evolving capacities. Obscene, pornographic and violent materials shall not be made accessible to children;
(d) Restaurants, KTV bars, nightclubs, hotels, motels and other business establishments in entertainment, tourism and travel industry, and gambling centers including cockpits, which provide access to adult entertainment, shall ensure that the child is not allowed within their premises. It shall be the responsibility of the owners of bars, karaoke joints to require proof of age before employment in night clubs, bars, karaoke, etc. Owners/managers/operators of these establishments shall post a visible and legible notice disallowing minors from entering the premises;
(e) It shall be the responsibility of owner/operator/manager of business establishments to verify the age of the person seeking employment.

All employers shall not engage a child in work that endangers health, safety and normal development;

(f) Shopping malls/centers, boutiques, novelty stores, video arcades and other gaming centers shall monitor the presence of school-aged children during school hours in their premises. The presence of these children shall be reported to the schools to which these children belong. In cases where these children are not enrolled in schools, the parents and/or guardians shall be informed;

(g) It shall be the responsibility of internet café owners/operators to regulate the exposure of children to pornography and violence in the internet; and

(h) Private business sector shall provide summer job trainings for new high school graduates with intentions to pursue college. This program shall allow the students an insight on the value of earning money; learn the value of work necessary for their future.

SECTION 51. **ROLE OF THE SANGGUNIANG KABATAAN** - The Sangguniang Kabataan (SK) as established under the Local Government Code shall, in addition to its powers and functions, actively involve itself in the formulation and implementation of prevention and protection programs in the community. It shall coordinate with the local councils for the welfare of children for this purpose. The SK shall allocate sufficient appropriations of its budget to prevention programs for the youth. Livelihood programs and technical education for out-of-school, impoverished and children who were displaced because of armed-conflict should also be initiated.

SECTION 52. **RESPONSIBILITY OF PRIVATE AND PUBLIC DOCTORS, MIDWIVES AND OTHER MEDICAL PRACTITIONERS AND HEALTH CARE PROVIDERS** - It shall be the responsibility of all doctors, midwives and other health care providers to educate parents on proper care and nutrition of the child. They shall also exercise due diligence in ensuring the safe delivery of the child. The physician, nurse or midwife in attendance at birth or the parents of the newborn shall have the duty to register the birth of the newborn child in accordance with the Civil Registry Law.

SECTION 53. **RESPONSIBILITY OF POLICE AND MEDICAL OFFICERS** - All cases of child abuse (medical and police records, etc.) shall be treated with utmost confidentiality so as to protect the identity of the child.

SECTION 54. **RESPONSIBILITY OF THE CUSTODIAN/CENTER WHERE CHILD IS PLACED** - The custodian of the child or the center where the child is placed for purposes of care, protection or treatment shall regularly review the condition of the child and report the same to the Local Social Welfare and Development Office (LSWDO).

ARTICLE 11

SUPPORT SERVICES AND FACILITIES

SECTION 55. **COMMUNITY-BASED SUPPORT SERVICES** -The Local Government of Los Baños shall, through the Council, undertake the following support services for children and their families:

(a) Recognize the sanctity of marriage and in strengthening the family bonds and in the process, promote programs on responsible parenting and marriage counselling;
(b) Provide medical and legal assistance, and counselling to abuse children and their families;
(c) Provide moral and spiritual recovery programs, skills training and livelihood development programs and house care services for rehabilitation of children victims and their families;
(d) Conduct information and awareness campaigns on violence against women, children, anti-trafficking and other similar concerns to strengthen the enforcement of laws;
(e) Include the Special Program for Employment of Students (SPES) in the Annual Appropriations Ordinance of the LGU;
(f) Encourage the Local Civil Registrar to facilitate the free registration on birth and death of indigent children;
(g) Institutionalize the observance and celebration of Linggo ng Kabataan to protect the interests of the youth and prepare them for their roles as future leaders of the community;

SECTION 56. **HEALTH AND FAMILY PLANNING CENTERS** - There shall be established a Health and Family Planning Center in every barangay or a cluster of barangays as the case may be, within the territorial and political jurisdiction of Los Baños, Laguna. The same shall have adequate number of Barangay Health Workers (BHW) tasked to perform health-related activities with compensation commensurate to the task assigned.

The Local Health Office (LHO), through Health and Family Centers, shall implement and sustain the primary health care program for every child and ensure that measures to support the program on health under the framework of primary health and preventive care of the Local Government of Los Baños have been appropriately implemented, which shall include, but not limited to the following:

(a) The sustainability of maternal and child care service program which shall cater to the health of the mother who affects the child in the womb with the end view of a healthy mother and baby;
(b) The protection of pregnant women particularly those at risk get emergency obstetric care, having at least four pre-natal check-ups, immunization against tetanus and an effective program that all pregnancies are spaced at least two years apart;
(c) The promotion of breast feeding for infant and full implementation of the Milk Code (EO 51, 1986) of the Philippines hence, all lactating mothers are required to practice exclusive breastfeeding for the first six (6) months unless her physical or medical condition prevents her to do so;

(d) The completion of the immunization series of children and youth for prevention of tuberculosis, diphtheria, pertussis, tetanus, measles, poliomyelitis and such other diseases for which vaccines have been developed for administration;
(e) The weighing of all children 0-2 years old and identified below normal (Low/Very Low) are weighed monthly and counseling of parents on health, nutrition and psycho-social care;
(f) The nutrition program that shall establish and sustain growth monitoring of children at home and in school and ensures healthy foods for every family with an aim that all children are nourished;
(g) The administration of Vitamin A capsules and deworming tablets twice a year to all children 1-5 years old;
(h) The provision of developmental assessment for children 3yrs old and below at risk for developmental delay;
(i) The establishment of hospital's indigent fund for the purpose of ensuring the availment of indigent-child patient needing the professional services of private doctors/specialist to cure his/her ailment;
(j) The eradication of disease and malnutrition within the framework of primary health care, through the application of readily available technology and through the provision of adequate nutritious foods and clean drinking water, taking into consideration the dangers and risk of environmental pollution; and
(k) The provision of food commodities for supplementary feeding and multi-vitamins supplementation for identified underweight free school and school children.

The Local Health Office (LHO) shall be the lead agency to implement this Section and shall hereinafter provide for appropriate policy, rules and regulations or recommendations, subject to the approval of the Local Sanggunian, for effective delivery of health services to all children in Los Baños.

SECTION 57. **CHILD-FRIENDLY HOPSITALS/CLINICS/HEALTH CENTERS IN LOS BAÑOS** - All hospitals/clinics/health centers within Los Baños shall set-up child-friendly units with sufficient facilities to ensure the care and safety of child-patient and compliance of the same to the directives of the Department of Health (DOH).

SECTION 58. **SATELLITE CLINICS AND MATERNAL OBSTETRICS CENTER** - The Local Government of Los Baños thru the LHO shall establish satellite clinics in identified barangays or cluster of barangays. The same must be strategically located, taking into consideration the accessibility to the public. To give priority to the basic needs of pregnant women, a Maternal Obstetrics Center shall be integrated in every satellite clinic.

SECTION 59. **ESTABLISHMENT OF LACTATION STATIONS** - It is hereby mandated that all health and non-health facilities, establishments or institutions such as malls, supermarkets and schools shall establish lactation stations as per Ordinance No. 2013-1219.

The lactation stations shall be adequately provided with the necessary equipment and facilities, such as: lavatory for hand-washing, unless there is

an easily-accessible lavatory nearby; refrigeration or appropriate cooling facilities for storing expressed breast milk; electrical outlets for breast pumps; a small table; and comfortable seats. The lactation station shall not be located in the rest room.

Any health and non-health facility, establishment or institution satisfying the requirements of relative to a proper lactation station may apply with the Local Health Office for a "working mother-baby friendly" certification. The LHO shall promulgate guidelines to determine eligibility for such certification, which shall include an annual inspection to confirm the continued compliance with its standards.

SECTION 60. **SAFE DRINKING WATER** - The Local Government of Los Baños shall ensure safe water supply for children and strengthen its program related to providing potable drinking water and encourage private participation for water system development, thereby ensuring that all households within the town have access to safe drinking water.

SECTION 61. **SANITARY TOILET/COMFORT ROOMS** - All households shall be required to put-up sanitary toilet or latrines. The Local Government shall construct public toilets and comfort rooms which shall be located at strategic places.

SECTION 62. **ESTABLISHMENT OF DAY CARE CENTERS AND ORGANIZATIONS OF FEDERATION OF DAY CARE WORKERS OF LOS BAÑOS (FDWLD)** - There shall be, in every Barangay of Los Baños, such number of Day Care Centers depending on the population level of the children and how depressed the barangay is, as determined by the Local Social Welfare and Development Office (LSWDO), with corresponding Day Care Workers, sufficient in number and duly compensated.

To set-up a pool of trained day care professionals, all day care workers shall form an organization to be known as the Federation of Day Care Workers of Los Baños (FDCWLB) within six-months from effectivity of this Code. The LSWDO shall facilitate the organization of the same.

SECTION 63. **BARANGAY-LEVEL RECREATIONAL AND CULTURAL FACILITIES AND PROGRAMS** - All barangays shall be required to establish children's park, recreational program and facilities for children, taking into consideration the revival of indigenous games reflective of the cultural diversity in Los Baños. The Liga ng mga Barangay shall facilitate the implementation of this Section.

SECTION 64. **LOCAL CHILDREN'S LITERATURE AND ESTABLISHMENT OF A LIBRARY** - In support to the socio-cultural development in its locality, the Local Government of Los Baños shall establish a Library and invest in the production of local literature for children or other relevant materials.

SECTION 65. **CHILD AND YOUTH CRISIS INTERVENTION CENTER (CYCIC)** -The Local Government of Los Baños, in its effort to establish a community-based strategy for the protection of children, the right of children to assistance, including proper care and nutrition, and special protection from all forms of neglect, abuse, cruelty and exploitation, and

other conditions prejudicial to their development and to protect the best interest of the child through measures that will ensure the observance of international standards of child protection, shall endeavor to institutionalize a Child and Youth Crisis Intervention Center (CYCIC) with the technical assistance and supervision of the LSWDO. Within one (1) year from the effectivity of this Code, the same must be established and operational. The LSWDO shall be the lead Local Government Office that will implement this Section.

ARTICLE 12

IMPLEMENTING MECHANISM

SECTION 66. **IMPLEMENTING MECHANISM** - There shall be established an implementing mechanism for the survival and development, protection, security and participation of children in Los Baños. The implementing mechanism and structures shall be the Local Council for the Protection of Children (LCPC), and Barangay Council for the Protection of Children (BCPC).

SECTION 67. **THE LOCAL COUNCIL FOR THE PROTECTION OF CHILDREN (LCPC)** - There shall be an organized Local Council for the Protection of Children to plan and implement program and services for children at the local level.

SECTION 68. **COMPOSITION OF THE LCPC** - The members of LCPC shall include the following:

(a) Local Chief Executive/Mayor;
(b) Chairman, Local Sanggunian Committee on Youth Development;
(c) Chairman, Local Sanggunian Committee on Women, Children and Family;
(d) Local Planning and Development Coordinator;
(e) Local Civil Registrar;
(f) Local Social Welfare and Development Officer;
(g) Local Health Officer;
(h) Local Agriculturist;
(i) DepEd District Supervisor;
(j) DOJ Provincial/Local Prosecutor;
(k) Local Government Operations Officer, Department of Interior and Local Government (DILG);
(l) Municipal Budget Officer;
(m) Local Nutrition Officer;
(n) Public Employment Service Office (PESO) officer;
(o) Gender and Development (GAD) officer;
(p) Barangay Health Workers (Autism Society Philippines, Laguna Chapter);
(q) Philippine National Police, Chief of Police;
(r) Liga ng Mga Barangay President; and
(s) Three (3) NGO Representatives (Private Sector and Peoples Organization.

SECTION 69. **FUNCTION OF THE LCPC** - The following shall be the functions of LCPC:

(a) Formulate Plan of Action for Children; incorporating projects and programs needing assistance by the Barangay; and ensure its integration into the Local Development Plan;
(b) Monitor and evaluate the implementation of the Local and Barangay Plan of Action for Children;
(c) Promptly address issues and concerns affecting children and youth;
(d) Advocate for the passage of relevant child and youth protection ordinance;
(e) Advocate for the increased support and resource allocation for children's programs and projects;
(f) Provide technical assistance to the community-based frontline workers through conduct of capability building and human resource development activities; and
(g) Prepare contingency measures to protect children and their families for children's situations brought about by natural and man-made calamities.

SECTION 70. **LCPC SECRETARIAT FUNCTION** - The secretariat support shall be lodged with the LSWDO who shall be responsible for the documentation of proceedings of meetings and preparation of reports and other necessary document by the council.

SECTION 71. **BARANGAY COUNCIL FOR THE PROTECTION OF CHILDREN (BCPC)** - There shall be created BCPC in every barangay in Los Baños. The Punong Barangay of the respective barangay are hereby mandated to spearhead the creation and strengthening of said Council with the support of the Local Government Operations Officer (DILG) and other concerned Government and Non-Government Agencies.

SECTION 72. **COMPOSITION OF BCPC** - The membership of the BCPC's shall be taken from responsible members of the community including a representative of the youth, as well as representatives of government and private agencies concerned with the welfare of children and youth whose area of assignment includes the particular barangay and shall be on purely voluntary basis.

SECTION 73. **FUNCTION OF BCPC** - The following are the powers and functions of BCPCs:

(a) Foster education of every child in the Barangay;
(b) Encourage the proper performance of duties of parents and provide learning opportunities on the adequate learning of children and on positive parent-children relationship;
(c) Protect and assist abandoned, maltreated and abused children and monitor cases filed against child abuser and report the same;
(d) Protect working children from abuse and exploitation;
(e) Take steps to prevent juvenile delinquency and assist parents and children with behavioral problems so that they can get expert advice;

(f) Promote the opening and maintenance of playgrounds and Day Care Centers and other services that are necessary for children and youth welfare;
(g) Promote wholesome activities/entertainment in the community;
(h) Assist parents whenever necessary in securing expert guidance counseling from private agencies;
(i) Advocate for the passage of Barangay Plan of Action for Children which addresses the needs of Children in the community and ensure its integration into the Barangay Development Plan and implementation by the barangay;
(j) Submit quarterly barangay accomplishment reports of the implementation of the plan to the LCPC; and
(k) Arrest any individual who is actually committing, about to commit or has committed an offense against the person of the minor.

CHAPTER IV

CHILD AND YOUTH DEVELOPMENT PROGRAM

ARTICLE 13

CHILDREN'S ASSOCIATION

SECTION 74. **THE MUNICIPAL AND BARANGAY CHILDREN'S ASSOCIATION** -The Municipal Government of Los Baños shall support and spearhead the organizing process of the Barangay Children's Association Federation, The Municipal Children's Association, in support to strengthening children's participation in the municipality.

SECTION 75. **BCPC AND MCPC REPRESENTATION** - The elected Presidents in every Barangay shall be the designated Children's Representative in their respective barangay's Barangay Council for the Protection of Children (BCPC). The Federation President shall be the designated Children's Representative in the Municipal Council for the Protection of Children (MCPC).

This course shall become an integral part of the existing Family Planning Seminar or Reproductive Health Course. The LSWDO and the LHO shall synchronize the family planning seminar with this provision.

First time parents shall also be encouraged to participate or attend a Responsible Parenting Course as a follow-up course before issuance of a Certificate of Live Birth by the Office of the Local Civil Registrar without prejudice to the early registration birth requirement under existing law.

ARTICLE 14

COMPULSORY PRE-NATAL CHECK-UP FOR PREGNANT OR EXPECTANT WOMEN & MOTHERS

SECTION 76. **COVERAGE** - Pre-natal check-up shall be compulsory for pregnant/expectant mothers for the duration of their pregnancy at the Local Health Center or in any barangay health center.

SECTION 77. **RESPONSIBILITY OF PREGNANT OR EXPECTANT MOTHERS** - A pregnant/ expectant mother shall be required to undergo pre-natal check-up for the duration of her pregnancy at the Local Health Center or in any barangay health center nearest her residence.

SECTION 78. **RESPONSIBILITY OF THE LOCAL HEALTH OFFICE** - The Local Health Office shall provide free basic pre-natal check-up to pregnant/expectant mothers, subject to the rules and regulations that may be promulgated by the said office, schedules, procedures and available resources to carry out the purposes of this Code.

SECTION 79. **RESPONSIBILITY OF THE LOCAL SOCIAL WELFARE AND DEVELOPMENT OFFICE (LSWDO), LOCAL CIVIL REGISTRAR (LCR) AND LOCAL PUBLIC INFORMATION OFFICE (LPIO)** - The Local Social Welfare and Development Office (LSWDO), the Office of the Local Civil Registrar (LCR) and the Local Public Information Office (LPIO) shall be responsible for informing couples who are applying for marriage, particularly the women, of this Code.

ARTICLE 15

NO HOUSE DELIVERY

SECTION 80. The Local Government of Los Baños, through the LHO, hereby discourages pregnant or expectant mothers and women to deliver their infants at home, even under the assistance/guidance of a midwife to avoid health risks for the mother and the infant.

SECTION 81. Midwives under the LHO are hereby cautioned to avoid assisting in house deliveries, except during emergency cases, but must encourage pregnant women and mothers to submit to the medical care of an obstetrician-gynecologist in a hospital setting during delivery.

ARTICLE 16

EARLY CHILDHOOD CARE AND DEVELOPMENT PROGRAM

SECTION 82. **EARLY CHILDHOOD CARE AND DEVELOPMENT PROGRAM** - The Local Government of Los Baños shall initiate an Early Childhood Care and Development Program to ensure to the maximum extent possible the survival and development of the child, which shall include but not limited to the following programs:

(a) The care of 0-2 years old children in 24-hour basis;

(b) The attendance of all children 3-5 years old to early education programs;
(c) The assurance that all children 6-12 years old are studying in school;
(d) The assurance that all children 13-18 years old attend and finish high school;
(e) The assurance that all school-children pass the National Achievement Test;
(f) The identification of out-of-school children for the purpose of establishing back-to-school program or alternative education, their engagement in income producing projects/jobs and become productive citizens; and
(g) Child minding/caring services program.

ARTICLE 17

ESSENTIAL NEWBORN CARE

SECTION 83. **ESSENTIAL NEWBORN CARE (ENC) PROTOCOL** - The ENC Protocol is a step-by-step guide for health workers and medical practitioners issued by the Department of Health (DOH) for implementation under Administrative Order 2009-0025. It is a simple cost-effective newborn care intervention that can improve neonatal as well as maternal care and an evidence-based intervention that:

(a) Emphasizes a core sequence of actions, performed methodically
(b) Is organized so that essential time-bound interventions are not interrupted; and
(c) Fills a gap for a package of bundled interventions in a guideline format.

SECTION 84. **STEP-BY-STEP INTERVENTIONS** - Listed below are the four (4) simple, time-bounded steps under the ENC Protocol:

(a) Immediate drying;
(b) Uninterrupted skin-to-skin contact;
(c) Proper cord clamping and cutting; and
(d) Non-separation of the newborn from the mother for early breastfeeding initiation and roaming in.

SECTION 85. **IMMEDIATE DRYING** - By using a clean, dry cloth, thoroughly dry the baby, wiping the face, eyes, head, front and back, arms and legs. Immediate drying or delayed washing of the newborn provides protection against hypothermia, infection and encourages the natural crawling reflex.

SECTION 86. **UNINTERRUPTED SKIN-TO-SKIN CONTACT** - Aside from the warmth and immediate bonding between mother and child, it has been found that uninterrupted skin-to-skin contact between mother and newborn starting from birth for at least six hours stimulates the mucosa-associated lymphoid tissue system and protects the newborn from hypoglycemia.

SECTION 87. **PROPER CORD CLAMPING AND CUTTING** - Waiting for up to three minutes or until the pulsations stop is found to reduce to chances of anemia and fewer intraventricular hemorrhages in full term and pre-term babies.

Evidence also shows that delaying cord clamping has no significant impact on the mother.

SECTION 88. **NON-SEPARATION OF THE NEWBORN FROM THE MOTHER FOR EARLY BREASFEEDING INITIATION AND ROOMING-IN** - The earlier the baby breastfeeds, the lesser the risk of death. Keeping the baby latched on to the mother will not only benefit the baby but will also prevent doing unnecessary procedures like putting the newborn on a cold surface for examination, administering glucose water or formula and foot printing and washing – the World Health Organization's (WHO) standard is to delay washing up to 6 hours.

On the other hand, necessary actions such as eye care, vitamin K administration must be timed. Eye care must be done after the infant has located the mother's breast.

SECTION 89. **UNANG YAKAP CAMPAIGN** - The Local Health Office (LHO) shall actively campaign for the promotion of the ENC Protocol by enjoining other government agencies, other public and private healthcare providers and all health practitioners involved in maternal and newborn care to observe and ensure the quality provision of time-bound interventions of newborn care. The LHO together with the LPIO shall also be responsible for the information dissemination of this campaign to all Los Baños residents most especially to expectant women/ mothers and their partners.

ARTICLE 18

COMPREHENSIVE NEWBORN SCREENING (Ordinance No. 2010-952)

SECTION 90. The Local Government of Los Baños hereby adopts the Comprehensive Newborn Screening System implemented by the Department of Health in accordance with Republic Act No.9288, otherwise known as the "Newborn Screening Act of 2004".

SECTION 91. The Local Government, through the LHO, shall ensure that all newborn infants are offered the opportunity to undergo newborn screening and thus be spared from heritable conditions that can lead to mental retardation, serious health complications and death, if undetected and untreated.

SECTION 92. **DECLARATION OF NEWBORN SCREENING WEEK** - In support to the provisions of Republic Act No. 9288, the Local Government of Los Baños hereby declares the first week of October every year as "Newborn Screening Week".

ARTICLE 19

PROMOTION OF BREASTFEEDING

SECTION 93. Pursuant to Executive Order No. 51 dated October 10, 1986 or "The Milk Code of the Philippines" and Republic Act No. 7600 or "The Rooming-In and Breastfeeding Act of 1992", the Local Government of Los Baños, through the LHO, shall protect and promote breast feeding of newborn

infants and shall create an environment where basic physical, emotional and psychological needs of mothers and infants are fulfilled through the practice of rooming-in and breastfeeding.

SECTION 94. Health personnel under the LHO shall inform pregnant women and mothers on the importance of mother's milk, its benefits to the infant and superiority over breastmilk substitute, and the advantages of breastfeeding their infants.

SECTION 95. No financial or material inducement shall be made by manufacturers, distributors or suppliers of breastmilk substitute to promote their products to health workers or their families, nor shall these be accepted by the health workers or members of their families.

SECTION 96. Bottle feeding shall be allowed only when the mother has been informed by the attending health personnel of the advantages of breastfeeding and the proper techniques of infant formula feeding and the mother has opted in writing to adopt infant formula feeding for her infant.

SECTION 97. **ESTABLISHMENT OF THE LOS BANOS HUMAN MILK BANK (LBHMB)** - The Local Government of Los Baños, through the Municipal Health Office (MHO) shall establish a Human Milk Bank which shall be known as the "Los Baños Human Milk Bank" or LBHMB for the support of women and children in need of breastmilk. The LBHMB shall collect, process, and store breastmilk for vulnerable babies such as, but not limited to: pre-term or premature; malnourished; infants in neonatal intensive care units; motherless infants; and infants with seriously ill mothers or mothers incapable of breastfeeding.

ARTICLE 20

MASUSTANSIYANG PAGKAIN PARA SA BATANG PILIPINO ACT

SECTION 98. **ADOPTION OF THE NATIONAL FEEDING PROGRAM -** The Local Government of Los Baños hereby adopts the provisions of Republic Act No. 11037, otherwise known as the "Masustansyang Pagkain para sa Batang Pilipino Act," which establishes a National Feeding Program aimed at combating hunger and undernutrition among undernourished children in public day care centers, kindergarten, and elementary schools.

SECTION 99. **MUNICIPAL FEEDING PROGRAM -** The Municipal Feeding Program is hereby established to address undernutrition among Filipino children in the Municipality of Los Baños.

The Program shall have the following components and coverage:

(a) Supplemental Feeding Program for Day Care Children. - The DSWD, in coordination with the LGUs concerned, shall implement a supplemental feeding program for undernourished children with ages three (3) to five (5) years. The Program shall be administered in day care centers or in any other facility which can be used for such purpose:

Provided, That the Program shall include the provision of at least one (1) fortified meal for a period of not less than one hundred twenty (120) days in a year: Provided, further, that in the preparation of

fortified meals, the DSWD shall work in collaboration with recognized parents' organizations;

(b) School-Based Feeding Program. - The DepED shall implement a school-based feeding program for undernourished public school children from kindergarten to grade six (6): Provided, That the Program shall include the provision of at least one (1) fortified meal to all undernourished public elementary school children for a period of not less than one hundred twenty (120) days in a year;

(c) Milk Feeding Program. - The NGAs shall coordinate with the Department of Agriculture (DA), the National Dairy Authority, the Philippine Carabao Center and the Cooperative Development Authority for the incorporation of fresh milk and fresh milk-based food products in the fortified meals and cycle menu in accordance with Republic Act No. 8172, otherwise known as the "Philippine Food Fortification Act of 2000", utilizing, as far as practicable, locally produced milk in order to enhance its nutritional content and, at the same time, help boost livelihood opportunities for local dairy farmers and the local dairy industry;

(d) Micronutrient Supplements. - The NGAs, in coordination with the DOH, shall provide micronutrient supplements to the Program beneficiaries including the use of iodized salt in accordance with Republic Act No. 8172, otherwise known as the "Salt Iodization or ASIN' law;

(e) Health Examination, Vaccination and Deworming. - The NGAs, in coordination with the DOH and LGUs concerned, shall conduct simultaneous health examinations, including, but not limited to, deworming and vaccination, as the case may be, to Program beneficiaries;

(f) Gulayan sa Paaralan. - The NGAs shall encourage their respective component units to devote a portion of their land or space for the cultivation of vegetables and other nutrient-rich plants as identified by the NNC: Provided, that component units lacking in land shall adopt modern gardening technologies with the assistance of the DA, the Department of Science and Technology (DOST) and the city or municipal agricultural officers. Parents shall also be encouraged to maintain a similar program in their own backyards;

(g) Water, Sanitation, and Hygiene (WASH). - The NGAs, in coordination with the DOH and LGUs, shall establish and maintain water and sanitation facilities, promote good hygiene and safe food preparation in all of its component units especially in areas devoted for the preparation of fortified meals under the Program; and

(h) Integrated Nutrition Education, Behavioral Transformation, and Social Mobilization. - The Program shall be complemented by a public health, nutrition, and values transformation campaign to promote a holistic and integrated approach to health and nutrition education. Orientation-training on the objectives and mechanics of the Program shall be held among personnel of NGAs and LGUs concerned, parent volunteers and the Parents and Teachers

Associations (PTAs) to generate support for the Program. The NGAs concerned shall also endeavor to mobilize community organizations to continue nutrition education outside of the school.

SECTION 100. **PRIORITIZATION IN THE PROGRAM IMPLEMENTATION** – The MHO, MAO, and MSWD shall create a three (3)-year plan to fully implement the Program: Provided, That the Departments concerned shall prioritize the implementation of the Program in the LGUs and public development centers or elementary schools that meet any of the following criteria:

(a) With the highest prevalence of undernutrition and nutrient-deficiency among children aged three (3) years up to grade six (6) level;

(b) With available facilities or capability to implement the Program; or

(c) Which prioritize such Program in their locality and are willing to provide counterpart resources for its implementation.

SECTION 101. **CREATION OF A MUNICIPAL NUTRITION INFORMATION SYSTEM** – The Municipal Nutrition Council (MNC) shall harmonize all existing local nutrition databases from barangays and other relevant agencies of government in order to identify individuals, groups, and/or localities that have the highest magnitude of hunger and undernutrition. This system shall henceforth be utilized in monitoring the health and nutrition of all children in this municipality, especially those covered by the Program.

SECTION 102. **LOCAL GOVERNMENT ASSISTANCE** - The Local Government of Los Baños shall assist the NGAs in the efficient and effective implementation of the Program in accordance with Section 5 of this Ordinance and shall be authorized to use a portion of the Gender and Development Fund and MCPC Fund as provided for in Republic Act No. 7160, otherwise known as the "Local Government Code of 1991," as amended to augment the appropriations available under the Annual Budget.

SECTION 103. **INTEGRATION TO MUNICIPAL ACTION PLAN** - Once the 3-Year Plan for the Municipal Program is created, the MNC shall ensure its integration into the Municipal Nutrition Action Plan.

SECTION 104. **PRIVATE SECTOR PARTICIPATION** - The Local Government of Los Baños shall encourage the participation of the private sector in the Program which shall include, among others, PTAs, private corporations, peoples and non-government organizations, and such other groups or organizations, both foreign and local, that may want to partner in whole or in part with the implementation of the Program.

SECTION 105. **MONITORING AND ANNUAL REPORT** - The Local Government of Los Baños, in coordination with the LGUs, the MNC, and other stakeholders, shall regularly monitor, review, and assess the impact and effectiveness of the Program as well as ensure compliance with standards and guidelines of the Program for food safety, quality, accountability, community participation, and the procurement and liquidation processes adopted. For this purpose, the MNAO shall prepare and submit an annual report on the status of the implementation of the Program to the Office of the Mayor and Sangguniang Bayan Office.

SECTION 106. **APPROPRIATIONS -** The Local Government of Los Baños shall allocate for the initial implementation of this Ordinance shall be sourced from the 1% LCPC Fund. Thereafter, such sums as may be necessary for the continuous implementation of this Ordinance shall be included in the annual budget thereafter.

SECTION 107. **PROCUREMENT OF GOODS AND SERVICES -** The Municipal Budget Office in consultation with the MHO are hereby mandated to specifically establish and promulgate a community-based mode of procurement, liquidation, and audit that will ensure the efficient and effective implementation of the Program: Provided, that this provision shall apply solely to the implementation of the Program by this Local Government Unit.

ARTICLE 21

REGISTRATION OF LIVE BIRTHS

SECTION 108. **MANDATORY REGISTRATION OF LIVE BIRTHS** - The child's parents or their duly authorized representative shall cause the registration of child's birth whether legitimate or illegitimate before the LCR within thirty (30) days from birth. In recognition of the effort of prompt registration, no cost shall be charged if the same is made within five (5) working days from birth of the child. Late registration shall be governed by existing rules and regulations.

SECTION 109. **REGISTRATION OF FOUNDLING CHILD** - The LSWDO shall cause the registration of foundling child within thirty (30) days upon actual custody before the LCR free of charge. Provided, that the LSWDO shall prepare a social case study report prior to registration.

For this purpose, foundling child refers to deserted or abandoned infant or child; a child committed to DSWD/LSWD or duly licensed institution with unknown facts of birth and parentage.

SECTION 110. **REGISTRATION AND RECTIFICATION OF SIMULATED BIRTH RECORDS -** The LCR shall accept applications for the rectification of simulated birth records as provided under Republic Act No. 11222. The local government shall assist the petitioners in gathering necessary documents and facilitate the application process. The local government shall ensure that all processes comply with the guidelines set forth by the Department of Social Welfare and Development (DSWD).

SECTION 111. **RESPONSIBILITIES OF THE MUNICIPAL SOCIAL WELFARE AND DEVELOPMENT OFFICE (MSWDO) -** The MSWDO shall:

(a) Provide necessary information and support to individuals or families in need of rectification of simulated births under the provisions of Republic Act No. 11222;
(b) Coordinate with the DSWD for the issuance of the Certification Declaring a Child Legally Available for Adoption (CDCLAA);
(c) Prepare a comprehensive report to be submitted with the application for the rectification of the simulated birth record.

SECTION 112. **PUBLIC AWARENESS AND EDUCATION -** The local government, in collaboration with the LSWDO and the Office of the Local Civil Registrar, shall conduct public awareness campaigns regarding the registration of live births, the registration of foundling children, and the rectification of simulated birth records to ensure that the community is informed about their rights and the procedures involved.

SECTION 113. **CONFIDENTIALITY OF RECORDS -** All records related to the registration of births, rectification of simulated birth records, and adoption procedures shall be treated with utmost confidentiality. Disclosure of any information pertaining to these records shall only be permitted as prescribed by law.

SECTION 114. **FEE STRUCTURE FOR REGISTRATION AND RECTIFICATION -** The municipality shall establish a fee structure for the registration and rectification of simulated birth records based on the socio-economic standing of the individual applying for such services. Fees shall be waived for indigent applicants as determined by the MSWDO's assessment.

SECTION 115. **REPORTING AND MONITORING -** The MSWDO shall submit a quarterly report to the Local Government Unit (LGU) detailing the number of registrations, rectifications processed, and any challenges faced during implementation. This report aims to provide insights into the effectiveness of these programs and inform future policy decisions.

ARTICLE 22

COMPULSORY BASIC IMMUNIZATION PROGRAM

SECTION 116. **COVERAGE -** Basic immunization against certain diseases shall be compulsory for infants before reaching one (1) year old.

SECTION 117. **SCOPE -** Basic immunization shall include:

(a) BCG Vaccination against tuberculosis;
(b) Inoculation against diphtheria, tetanus and pertussis;
(c) Oral poliomyelitis immunization;
(d) Protection against measles; and
(e) Immunization against rubella

Other basic immunization services for infants and children below eight (8) years of age may also be recommended by the Council.

SECTION 118. **RESPONSIBILITY OF THE LOCAL HEALTH OFFICE (LHO) -** The LHO shall provide free basic immunization services to infants and children below eight (8) years of age, subject to the rules and regulations promulgated by the Council.

SECTION 119. **RESPONSIBILITY OF PARENTS, GUARDIANS, OR PERSON HAVING CUSTODY OF THE INFANT OR CHILD -** It shall be the duty of the parents, guardian, or person having custody of the infant or child to see to it that such infant or child is presented for basic immunization services at such place and time as specified by the LHO.

SECTION 120. **RESPONSIBILITY OF THE HEAD OF SCHOOL OR INSTITUTION** - The head of an institution where infants or children are educated, treated, cared for, or committed by law for preventive or rehabilitative services shall provide basic immunization services. Provided, that arrangements may be made by the said institution with the MHO for free immunization services.

SECTION 121. **IMMUNIZATION OF SCHOOL ENTRANTS** - It shall be the duty of all schools, public and private, to ensure that all school entrants of pre-school and primary schools has received basic immunization, subject to rules and regulations promulgated by the Council.

ARTICLE 23

DENTAL CARE

SECTION 122. **DENTAL CARE** - To reduce the prevalence of dental caries, the LHO, in coordination of other government and non-government institutions, AND the private sector, shall conduct dental mission/programs regularly with an aim of zero-cavity for the children of Los Baños.

ARTICLE 24

MENTAL HEALTH AND WELFARE OF CHILDREN

SECTION 123. **MENTAL HEALTH POLICY ADOPTION -** The Local Government of Los Baños hereby adopts the provisions of Republic Act No. 11036, known as the "Mental Health Act," to promote and protect the mental well-being of children and adolescents within the municipality.

SECTION 124. **INTEGRATION OF MENTAL HEALTH SERVICES -** The Municipal Health Office (MHO) shall ensure that mental health services are integrated into basic health care services and provided within all public health facilities, including barangay health stations and primary health care centers, to cater to the mental health needs of children and adolescents.

SECTION 125. **PROMOTION OF MENTAL WELL-BEING IN SCHOOLS** - All educational institutions in Los Baños shall be mandated to implement mental health programs that are tailored for children and adolescents. This includes age-appropriate mental health education in the curriculum, training for teachers to identify and address mental health issues, and referral mechanisms for students in need of professional support.

SECTION 126. **ESTABLISHMENT OF CHILD FRIENDLY MENTAL HEALTH FACILITIES** - The Local Government of Los Baños shall prioritize the establishment of community-based mental health care facilities that cater specifically to children and adolescents. These facilities shall provide a welcoming and safe environment equipped with trained mental health professionals capable of addressing the unique needs of younger service users.

SECTION 127. **RIGHTS OF CHILDREN WITH MENTAL HEALTH CONDITIONS** - The Local Government shall uphold the rights of children with mental health conditions, ensuring humane treatment, access to age-appropriate mental health services, confidentiality of information, and opportunities for social reintegration without stigma or discrimination.

SECTION 128. **AWARENESS CAMPAIGNS** - The MHO, in coordination with the Department of Education (DepED) and local non-governmental organizations, shall initiate regular awareness campaigns concerning mental health for children and their families, aimed at reducing stigma and encouraging early intervention and treatment.

SECTION 129. **TRAINING AND CAPACITY BUILDING** - The Local Government of Los Baños shall facilitate training programs for mental health professionals, educators, and parents, focusing on recognizing signs of mental health issues in children, providing appropriate support, and understanding the rights and needs of children with mental health conditions.

SECTION 130. **PARTNERSHIPS FOR SERVICE DELIVERY** - The Local Government of Los Baños shall foster partnerships with private sectors, civil society organizations, and academic institutions to create a network of support and resources for the effective delivery of mental health services to children.

SECTION 131. **MONITORING AND EVALUATION** - The implementation of mental health services for children in Los Baños shall be regularly monitored and evaluated by the Municipal Nutrition Council (MNC), ensuring that services remain effective, inclusive, and in alignment with the objectives defined in Republic Act No. 11036.

SECTION 132. **APPROPRIATIONS FOR IMPLEMENTATION** - The Local Government of Los Baños shall allocate funds annually for the establishment and maintenance of mental health programs and facilities for children, ensuring a dedicated budget is sourced from the annual appropriations of the municipality.

SECTION 133. **IMPLEMENTING RULES AND REGULATIONS** - The Mayor shall issue the necessary Implementing Rules and Regulations (IRR) for this article within 30 days from its enactment, ensuring its effective implementation and adherence to the objectives of the "Mental Health Act."

ARTICLE 25

FOOD FORTIFICATION PROGRAM

SECTION 134. **PROMOTION OF IODIZED SALT** - The Local Government of Los Baños shall continue promoting the use of Iodized Salt through the implementation of Republic Act No. 8172, otherwise known as "An Act Promoting the Salt Iodization Nationwide".

SECTION 135. **PROMOTION OF IRON FORTIFIED RICE** - The Local Government of Los Baños shall continue to make available to the consuming public iron fortified – rice to combat iron deficiency, particularly among school aged –

children in compliance to Republic Act No. 8976 or the "Food Fortification Law of the Philippines".

SECTION 136. **"GARANTISADONG PAMBATA" PROGRAM** - The Local Government of Los Baños, in coordination with the Department of Health (DOH) and in partnership with Non-Governmental Organizations (NGOs), shall continue to implement the 'Garantisadong Pambata' Program, providing adequate funds to ensure that children in need receive the necessary health and nutrition services.

ARTICLE 26

DAY CARE PROGRAM

SECTION 137. Day Care Service (3-4 Years Old). Pursuant to Republic Act No. 6972 or "The Barangay Level Total Development and Protection of Children Act", there is hereby established a day care center in every barangay within Los Baños. Children below five (5) years old may be admitted to the day care center with the consent of the parents or guardian, where basic education and primary health care services shall be provided to them.

SECTION 138. **SUPPORT SERVICES** - The Local Government of Los Baños, through the Council in coordination with the LHO and the LSWDO, shall provide the following support services to day care children and their families:

(a) Medical and dental check-up;
(b) Eye screening;
(c) Ear/hearing check-up;
(d) Orientation on proper hand washing and tooth brushing;
(e) Provision of free toothbrush and toothpaste;
(f) Supplemental feeding; and
(g) Parent effectiveness service to day care parents.

SECTION 139. The LSWDO shall develop criteria for selecting, qualifying, and accrediting barangay day care workers, including provisions for their capability development through seminars and training, in line with the standards for implementing the total development and protection of children program.

SECTION 140. The Local Government of Los Baños, through the LHO and LSWDO, shall take appropriate measures to combat disease and malnutrition within the framework of primary health care through the application of readily available technology and through provision of adequate nutritious food and clean drinking water. In line with this advocacy, the concerned local offices shall initiate supplemental feeding programs for malnourished children through the day care centers.

ARTICLE 27

SCHOLARSHIP PROGRAM
(Ordinance No. 2013-1248, as amended)

SECTION 141. **SCHOLARSHIP PROGRAM** - The Local Government of Los Baños shall continue implementing the Scholarship Program as prescribed in Ordinance No. 2013-1248 and its amendments. Utmost priority shall be granted to the poorest of the poor, most talented deserving graduates and students in public elementary, secondary and tertiary schools. The scholarship grants shall be proportionally shared among the town's fourteen (14) barangays based on their total population.

SECTION 142. **AUTOMATIC GRANTS TO TOP THREE GRADUATES OF PUBLIC ELEMENTARY AND SECONDARY SCHOOLS** - Graduates of public elementary and secondary schools awarded the highest degree of honors from valedictorian, salutatorian to first (1st) honorable mention are automatically covered by the scholarship program and are allowed to enroll in any public or private secondary and tertiary schools within Los Baños.

SECTION 143. **SPECIAL COLLEGE EDUCATION GRANT FOR INDIGENT STUDENTS WITH AVERAGE INTELLIGENCE, SONS/DAUGHTERS OF BARANGAY TANODS AND SPORTS AWARDS RECIPIENTS** - This distinct program supports the LGU's commitment to providing educational opportunities to less fortunate families, allowing their children to complete secondary education or earn a four-year college degree, thereby improving their socio-economic status.

ARTICLE 28

SPECIAL EDUCATION, ALTERNATIVE LEARNING, SKILLS AND DEVELOPMENT PROGRAM

SECTION 144. **SPECIAL EDUCATION AND ALTERNATIVE LEARNING PROGRAM** - The Local Government of Los Baños shall assist public schools in establishing Special Education Centers to address the educational and learning needs of differently-abled children within the jurisdiction. Regular funding for this program shall be appropriated from the Special Education Fund (SEF).

SECTION 145. **SKILLS AND TALENT DEVELOPMENT PROGRAM** - The Local Government of Los Baños, through relevant Government Offices and Programs, shall establish a program to support children with special skills and talents in areas such as sports, arts, music, dancing, and other extraordinary abilities.

SECTION 146. **INTEGRATION OF ALTERNATIVE LEARNING SYSTEMS (ALS)** - The Local Government of Los Baños shall adopt the provisions of Republic Act No. 11510, known as the 'Alternative Learning System Act,' ensuring that out-of-school children and differently-abled individuals have access to nonformal and informal educational opportunities. The municipality shall support ALS programs to meet the unique learning needs of these individuals and provide pathways to successful futures.

SECTION 147. **HIRING AND CAPACITY BUILDING OF EDUCATORS -** The Local Government of Los Baños shall work with the Department of Education (DepEd) and other relevant agencies to hire, train, and equip educators and facilitators who are specifically skilled in delivering Special Education and ALS programs. This will ensure high-quality instruction and support for participants.

SECTION 148. **COLLABORATION WITH COMMUNITY PARTNERS -** The Local Government of Los Baños shall promote collaborations with community organizations, non-governmental organizations, and private sectors to support the implementation of Special Education and ALS programs. This partnership will facilitate the sharing of resources, expertise, and best practices in education and training.

SECTION 149. **COMMUNITY LEARNING CENTERS (CLCs) -** The Local Government shall establish Community Learning Centers to serve as accessible hubs for providing Special Education and ALS programs. These centers will be equipped with the necessary resources and facilities to accommodate the diverse educational needs of differently-abled individuals and out-of-school learners.

SECTION 150. **MONITORING AND EVALUATION -** There shall be regular monitoring and evaluation of the Special Education and ALS programs undertaken by the Local Government of Los Baños, ensuring compliance with the standards set forth in Republic Act No. 11510. Annual progress reports shall be submitted to the Office of the Mayor and relevant stakeholders to assess effectiveness and identify areas for improvement.

SECTION 151. **APPROPRIATIONS FOR SPECIAL EDUCATION AND ALS -** The Local Government of Los Baños shall allocate necessary funds for the implementation of Special Education and ALS programs from the annual budget. This allocation shall include resource provisions for CLCs, training for educators, and materials that support differentiated learning strategies.

SECTION 152. **PUBLIC AWARENESS AND ADVOCACY -** The Local Government shall launch public awareness campaigns to promote the importance of Special Education and ALS within the community. These campaigns will aim to foster an inclusive attitude toward differently-abled children and out-of-school individuals, encouraging families to seek educational opportunities for their children.

ARTICLE 29

INCLUSIVE EDUCATION FOR LEARNERS WITH DISABILITIES (Republic Act No. 11650)

SECTION 153. **MUNICIPALITY OF LOS BAÑOS' INCLUSIVE EDUCATION POLICY -** The Local Government of Los Baños hereby adopts the policy of inclusion and services for learners with disabilities, in support of inclusive education, as stated in Republic Act No. 11650, or the "Instituting

a Policy of Inclusion and Services for Learners with Disabilities in Support of Inclusive Education Act".

SECTION 154. **PROTECTION AND PROMOTION OF RIGHTS OF LEARNERS WITH DISABILITIES** - The Local Government of Los Baños shall protect and promote the rights of all learners with disabilities to receive quality education. The Local Government will take necessary actions to ensure that this education is inclusive, equitable, and accessible.

SECTION 155. **CREATION OF INCLUSIVE LEARNING RESOURCE CENTER (ILRC)** - The Local Government of Los Baños shall establish an Inclusive Learning Resource Center (ILRC) to provide support, resources, and services to learners with disabilities. This includes access to assistive technology, special education programs, and counseling services.

SECTION 156. **CHILD FIND SYSTEM** - The Local Government of Los Baños shall implement a Child Find System to identify learners with disabilities ages three (3) to twenty-four (24), and infants and toddlers under the age of three (3), in compliance with Republic Act No. 10410, otherwise known as the "Early Years Act (EYA) of 2013".

SECTION 157. **TRAINING AND CAPACITY BUILDING** - The Local Government of Los Baños shall provide training and capacity building for teachers, educators, and support staff to ensure that they are equipped to support learners with disabilities in their education and development.

SECTION 158. **PRIVATE SECTOR PARTICIPATION** - The Local Government of Los Baños shall encourage the participation of the private sector in the implementation of the inclusive education policy, including donations of resources, expertise, and services to support learners with disabilities.

SECTION 159. **MONITORING AND EVALUATION** - The Local Government of Los Baños shall regularly monitor and evaluate the implementation of the inclusive education policy, including the effectiveness of the ILRC, the Child Find System, and the training and capacity building for teachers and support staff.

ARTICLE 30

CHILDREN'S EMERGENCY RELIEF AND PROTECTION ACT (Republic Act No. 10821)

SECTION 160. **ADOPTION OF THE REPUBLIC ACT NO. 10821** – The Local Government of Los Baños hereby adopts the provisions of Republic Act No. 10821, otherwise known as the "Children's Emergency Relief and Protection Act" which provides for the relief and protection of children in calamity and emergency situations.

SECTION 161. **PROTECTION OF CHILDREN'S RIGHTS DURING EMERGENCY SITUATIONS** - In the event of a disaster or emergency, the Local Government of Los Baños shall take all necessary measures to protect the rights of children, including, but not limited to, providing them with food, shelter, clothing, and medical care.

SECTION 162. **ESTABLISHMENT OF CHILD FRIENDLY SPACES -** The Local Government of Los Baños shall establish child-friendly spaces during emergencies, where children can engage in free and structured play, recreation, and learning activities. These spaces will also provide access to health, nutrition, and psychosocial support.

SECTION 163. **FAMILY TRACING AND REUNIFICATION -** The Local Government of Los Baños shall establish procedures for family tracing and reunification to reunite families separated by disasters and other emergency situations.

SECTION 164. **COORDINATION WITH CSOS AND NGOS -** The Local Government of Los Baños shall coordinate with civil society organizations and non-government organizations to provide support and assistance to children affected by disasters and emergency situations.

SECTION 165. **PROVISION OF RELIEF GOODS AND SERVICES -** The Local Government of Los Baños shall provide relief goods and services to children affected by disasters and emergency situations, including, but not limited to, food, shelter, clothing, and medical care.

SECTION 166. **MONITORING AND EVALUATION -** The Local Government of Los Baños shall monitor and evaluate the relief and protection efforts for children affected by disasters and emergency situations to ensure that their rights are protected and their needs are met.

ARTICLE 31

SPECIAL PROTECTION OF CHILDREN AGAINST CHILD ABUSE, EXPLOITATION AND DISCRIMINATION ACT (Republic Act 11036)

SECTION 167. **DECLARATION OF POLICY -** The Local Government of Los Baños recognizes the importance of protecting children from all forms of abuse, neglect, cruelty, exploitation, and discrimination, including the worst forms of child labor. This Ordinance is enacted to provide stronger protection for working children, following Republic Act No. 9231.

SECTION 168. **PROHIBITION OF CHILD LABOR -** In accordance with Section 12 of RA 9231, children below fifteen (15) years of age shall not be employed in any capacity, except under specific conditions, including work under the sole responsibility of their parents, provided this does not impair their development or violate educational requirements.

SECTION 169. **WORKING HOURS -** A child below fifteen (15) years of age may work for no more than twenty (20) hours a week, with restrictions ensuring not more than four (4) hours on any given day. Those aged fifteen (15) but under eighteen (18) shall not work more than eight (8) hours a day and forty (40) hours a week, with specific protections against late-night work.

SECTION 170. **WORST FORMS OF CHILD LABOR -** The Local Government affirms that no child shall be engaged in the worst forms of child labor, which includes slavery, prostitution, hazardous work, and any employment which endangers the health, safety, or morals of children.

SECTION 171. **REHABILITATION OF WORKING CHILDREN -** The LGU will establish a Trust Fund, financed through penalties for violations, dedicated to the rehabilitation and reintegration of children affected by violations of this Ordinance.

SECTION 172. **ACCESS TO EDUCATION -** All working children must be provided access to formal education, including programs designed for those who have not completed basic education. Employers are mandated to ensure that employed children prioritize their educational responsibilities.

SECTION 173. **RESPONSIBILITIES OF PARENTS AND EMPLOYERS -** Parents, guardians, and employers are held accountable for complying with the provisions of this Ordinance. Violations will result in penalties including fines, community service, and potential imprisonment for repeat offenders.

SECTION 174. **LOCAL MONITORING COMMITTEE -** The Local Government shall establish a Monitoring Committee, responsible for assessing compliance with child labor laws and conducting regular inspections of workplaces to ensure safe environments for children.

SECTION 175. **LEGAL, MEDICAL, AND PSYCHO-SOCIAL SERVICES** - The Municipality of Los Baños shall ensure that working children have access to free legal, medical, and psycho-social services to support their well-being and recovery from exploitation.

SECTION 176. **COORDINATION WITH NATIONAL AGENCIES -** The Local Government shall coordinate with the Department of Labor and Employment (DOLE) and other relevant agencies to ensure effective implementation, monitoring, and enforcement of child labor laws.

SECTION 177. **APPROPRIATIONS AND RESOURCES -** The Local Government shall allocate sufficient resources for the enforcement and promotion of this Ordinance within its Annual Budget in accordance with available funds.

ARTICLE 32

PROTECTION OF CHILDREN FROM TRAFFICKING AND EXPLOITATION (Republic Act No. 11862)

SECTION 178. **ANTI-TRAFFICKING PROVISIONS -** The Local Government of Los Baños hereby adopts the provisions of Republic Act No. 11862, known as the 'Expanded Anti-Trafficking in Persons Act of 2022,' which strengthens policies against human trafficking, provides penalties for violations, and appropriates funds to support the law's implementation.

SECTION 179. **DECLARATION OF POLICY ON CHILD PROTECTION -** It is hereby declared that the Local Government of Los Baños values the dignity of every human person, particularly children, and guarantees the respect of their individual rights. The Municipality shall give highest priority to the enactment of measures and development of programs that will promote human dignity, protect children from any threat of violence and exploitation, eliminate trafficking in persons, and mitigate pressures for involuntary migration and servitude of children.

SECTION 180. **RECOGNITION OF CHILDREN'S RIGHTS** – The Local Government of Los Baños shall recognize the equal and inalienable rights and inherent human dignity of all children, as enshrined in the United Nations Convention on the Rights of the Child and its optional protocols, and other relevant and universally accepted human rights instruments and international conventions to which the Philippines is a party. In all actions concerning children, their best interests shall be the paramount consideration.

SECTION 181. **PROHIBITION AND PENALTIES FOR TRAFFICKING -** The Local Government of Los Baños shall prohibit and penalize trafficking in persons, which includes the recruitment, transportation, transfer, harboring, or receipt of children for the purpose of exploitation, including but not limited to sexual exploitation, forced labor, slavery, servitude, or the removal or sale of organs.

SECTION 182. **RECOVERY, REHABILITATION, AND REINTEGRATION OF VICTIMS -** The Local Government of Los Baños shall establish a system for the recovery, rehabilitation, and reintegration of child victims of trafficking, which shall be culturally-responsive, gender- and age-appropriate, and disability-inclusive.

SECTION 183. **ROLE OF THE MUNICIPAL SOCIAL WELFARE AND DEVELOPMENT -** The Municipal Social Welfare and Development Office (MSWDO) shall be the lead agency in the implementation of this Article and shall coordinate with other government agencies, non-government organizations, and private sector organizations to ensure the effective implementation of the anti-trafficking program in the Municipality of Los Baños.

SECTION 184. **FUNDING AND REPORTING REQUIREMENTS -** The Local Government of Los Baños shall allocate funds for the implementation of this Article, which shall be sourced from the Municipal Budget and other available funds. The MSWDO shall submit an annual report on the implementation of this Article to the Office of the Mayor and the Sangguniang Bayan.

ARTICLE 33

ANTI-DRUG ABUSE PROGRAM

SECTION 185. **STRICT IMPLEMENTATION OF R.A. 7624** - To educate the children of Los Baños on the consequences of drug abuse and in line with the efforts of the national government to inform its constituents of the ill effects of drug abuse, drug addiction, or drug dependency and the protection of the children against the same, all public and private intermediate and secondary educational institutions in Los Baños are hereby directed to integrate subjects in drug prevention and control in their respective curriculum as provided by Republic Act No. 7624 better known as, "An Act Integrating Drug Prevention and Control in the Intermediate and Secondary Curricula".

The Department of Education (DepEd) Los Baños District shall be the lead agency to implement this Section and shall conduct appropriate measures for purposes of compliance by concerned educational institutions to this provision.

ARTICLE 34

YOUTH ENTREPRENEURSHIP

SECTION 186. **INCOME GENERATING PROJECTS AT HOME AND SCHOOL** - To create opportunities for livelihood and economic upliftment for families, income-generating projects, both at home and at school, shall receive the support of the Local Government of Los Baños. The latter shall continuously provide financial and technical assistance to these projects, with the ultimate goal of benefiting children and youth.

ARTICLE 35

DIFFERENTLY-ABLED CHILDREN

SECTION 187. **CONSIDERATION FOR DIFFERENTLY-ABLED CHILDREN** - The Local Government of Los Baños shall establish comprehensive programs for the differently-abled children, which should be child-focused and specific. Its paramount consideration is the achievement of a more systematic coordination of services such as health nutrition and education for children with special needs.

Chapter 8, Section 32 of RA 9442, otherwise known as the "Magna Carta for Disabled Persons and for Other Purposes" shall be strictly implemented and the penalty provided thereof shall be imposed to any person having found guilty by competent court for violation of this Section.

SECTION 188. **STRICT IMPLEMENTATION OF BP 344** - The Local Government of Los Baños shall ensure the strict implementation of Batas Pambansa Bilang 344, otherwise known as, "An Act to Enhance the Mobility of Disabled Persons by Requiring Certain Buildings, Institutions, Establishments, and Public Utilities to Install Facilities and other Devices". The penalty provided in Section 4 of BP 344 shall be imposed to any person found to have violated this section after due proceeding by the court of competent jurisdiction.

SECTION 189. **SURVEY AND ACTIVE PROGRAM FOR SPECIALLY-ABLED CHILDREN** - The Local Government of Los Baños shall make a periodic comprehensive survey on the specially-abled children in its locality, which is child-focused and specific. It aims to achieve a more systematic coordination of health services, nutrition, and education for children with special needs.

SECTION 190. **INVESTMENT IN EDUCATORS AND HEALTH PROFESSIONAL TRAINING PROGRAM FOR CHILDREN WITH SPECIAL NEEDS** - Training program for educators and health professionals handling specially-abled children with special needs shall form part of the priority programs of the Local Government.

SECTION 191. **SUPPORT SERVICES AND PROGRAMS** - The Local Government, through the LHO and LSWDO and in partnership with NGOs, shall:

(a) Provide assistive devices such as, but not limited to wheelchairs, crutches, canes, hearing aids, walkers and special seats to differently-abled children;
(b) Endeavor to provide regular physical therapy for children with Cerebral Palsy, Down Syndrome, and Hydrocephalus, educational or financial assistance for school children with physical deformities (speech impaired, clubfoot, blind, hearing impaired, epilepsy and polio) and mental disabilities;
(c) Refer concerned children to appropriate medical practitioners for possible operation of hernia and cleft/lip palate; and
(d) Initiate Early Detection and Disability Prevention Seminar among Day Care Parents, shall conduct eye screening, ear/hearing care among Day Care Children.

ARTICLE 36

PROTECTION FROM GENDER-BASED SEXUAL HARASSMENT (Republic Act No. 11313)

SECTION 192. **INTRODUCTION OF SAFE SPACES ACT** - In alignment with Republic Act No. 11313, also known as the Safe Spaces Act, the Local Government of Los Baños recognizes its imperative to create a safe and respectful environment for all individuals, particularly women and children. This article aims to define and address gender-based sexual harassment in public spaces, educational institutions, and workplaces.

SECTION 193. **LOCAL GOVERNMENT OF LOS BAÑOS RESPONSIBILITIES** - In accordance with the provisions of the Safe Spaces Act, the Local Government of Los Baños shall:

(a) Formulate and disseminate local ordinances that contextualize the Safe Spaces Act within the municipality, ensuring that all residents are aware of their rights and the resources available to them.

(b) Implement educational campaigns raising awareness about gender-based sexual harassment and the importance of respectful behavior, targeting schools, workplaces, and community spaces.

(c) Establish a dedicated anti-sexual harassment hotline and support systems for victims to report incidents confidentially.

SECTION 194. **DUTIES OF PUBLIC AND PRIVATE SECTOR ESTABLISHMENTS** - All establishments open to the public are encouraged to:

(a) Adopt a zero-tolerance policy toward gender-based sexual harassment and provide immediate assistance to victims.

(b) Train staff on recognizing and addressing gender-based harassment, designating at least one officer trained to handle such complaints.

(c) Install visible signage informing patrons of the policy against harassment and providing details for reporting incidents.

SECTION 195. **PROVISIONS FOR VULNERABLE POPULATIONS** - Special attention shall be given to vulnerable groups, including minors, senior citizens, persons with disabilities, and breastfeeding mothers, ensuring they are afforded additional protections under this ordinance.

SECTION 196. **COLLABORATION WITH LAW ENFORCEMENT** - The Local Government of Los Baños will collaborate with the local police, particularly the Women's and Children's Protection Desk, to enforce these laws, ensuring that perpetrators are apprehended and victims receive appropriate support.

SECTION 197. **COMMUNITY ENGAGEMENT** - To ensure the success of this initiative, the Local Government of Los Baños shall encourage community involvement in discussions and programs aimed at reducing gender-based sexual harassment, fostering a community standard of respect and safety for all individuals.

SECTION 198. **MONITORING AND EVALUATION** - Regular assessments shall be conducted to evaluate the effectiveness of measures taken under this ordinance, ensuring that the community of Los Baños continues to promote safe spaces free from harassment. Reports on these evaluations shall be submitted to the Office of the Mayor annually.

ARTICLE 37

ANTI-ONLINE SEXUAL ABUSE OR EXPLOITATION OF CHILDREN (OSAEC) AND ANTI-CHILD SEXUAL ABUSE OR EXPLOITATION MATERIALS (CSAEM) (Republic Act No. 11930)

SECTION 199. **DECLARATION OF POLICY** - In adherence to Republic Act No. 11930, the Municipality of Los Baños shall prioritize the protection and welfare of children against all forms of sexual abuse and exploitation, especially through online platforms. The Local Government Unit (LGU) commits to promoting child welfare, fostering an environment free from sexual violence, and implementing preventive programs targeted at online sexual abuse and exploitation.

SECTION 200. **UNLAWFUL ACTS** - It is hereby prohibited for any person to engage in the following acts involving children, regardless of the victim's consent:

(a) Hiring or coercing a child for the production of any child sexual abuse or exploitation material (CSAEM).
(b) Producing, distributing, or possessing any form of CSAEM.
(c) Grooming or luring children for sexual purposes through online or offline means.
(d) Using information and communications technology (ICT) for the exploitation or abuse of children.

SECTION 201. **DUTIES OF THE LOCAL GOVERNMENT** - The LGU shall:

(a) Promote awareness and education on the risks of online sexual abuse and exploitation among children and their guardians.
(b) Collaborate with law enforcement to report, investigate, and prosecute violations involving CSAEM and online sexual exploitation.

(c) Provide accessible reporting mechanisms for victims and witnesses, ensuring that children's experiences are handled sensitively and confidentially.

SECTION 202. **CREATION OF A LOCAL TASK FORCE -** The LGU shall form a task force dedicated to addressing and preventing online sexual abuse and exploitation of children. This task force will comprise representatives from local social welfare offices, law enforcement, educational institutions, and non-governmental organizations focusing on child welfare.

SECTION 203. **REPORTING AND RECORD-KEEPING -** The LGU shall maintain a comprehensive reporting and monitoring system to track incidents of online sexual abuse or exploitation involving children. This record will facilitate the identification of trends, allocate resources appropriately, and aid in the formulation of targeted interventions.

SECTION 204. **PROTECTION OF CHILD VICTIMS -** Child victims of online sexual abuse or exploitation shall be provided with protective custody and receive necessary rehabilitation and support services to aid their recovery and reintegration into society.

SECTION 205. **COMMUNITY AWARENESS CAMPAIGNS -** The LGU shall conduct regular community education programs to inform residents about online safety, the signs of abuse, and the importance of reporting suspicious activities concerning children.

SECTION 206. **COORDINATION WITH NATIONAL AGENCIES -** The Municipality of Los Baños shall actively coordinate with relevant national agencies and organizations to ensure a unified and efficient approach to combating online sexual exploitation and abuse.

SECTION 207. **IMPLEMENTATION OF NATIONAL STANDARDS -** The Local Government of Los Baños shall adopt and implement standards and protocols established by the national government regarding the prevention and response to online sexual abuse and exploitation of children, ensuring they are tailored to the local context.

ARTICLE 38

CHILDREN IN CONFLICT WITH LAW

SECTION 208. **STRICT IMPLEMENTATION OF R.A. 9344** - The Local Government of Los Baños shall ensure the strict implementation of Republic Act No. 9344, otherwise known as the "Juvenile Justice and Welfare Act of 2006".

SECTION 209. **RIGHTS OF CHILDREN IN CONFLICT WITH THE LAW** - Pursuant to Republic Act 9344, every child in conflict with the law shall have the following rights, including but not limited to:

(a) The right not to be subjected to torture or other cruel or inhuman treatment or punishment;
(b) The right not to be deprived unlawfully or arbitrarily, of his/her liberty; detention or imprisonment being a disposition of last resort, and shall be for the shortest appropriate period of time;

(c) The right not to be imposed a sentence of capital punishment or life imprisonment, without the possibility of release;
(d) The right to be treated humanely and with respect for the inherent dignity of the person, and in a manner in which takes into account the
(e) needs of a person his/her age. In particular, child deprived of liberty shall be separated from adult offenders. No child shall be detained with adult offenders. He/she shall be conveyed separately to or from court. He/She shall await hearing of his/her own in a separate holding area. A child in conflict with the law shall have the right to maintain contact with his/her family through correspondence and visits save in exceptional circumstances;
(f) The right to prompt access to legal and other appropriate assistance, as well as the right to challenge the legality of the deprivation of his/her liberty before a court or other competent, independent and impartial authority, and to a prompt decision on such action;
(g) The right to bail and recognizance, in appropriate cases;
(h) The right to testify as witness in his/her own behalf under the rule on examination of child witness;
(i) The right to have his/her privacy respected fully at all stages of the proceedings;
(j) The right to diversion if he/she is qualified and voluntarily avails of the same;
(k) The right to be imposed a judgment in proportion to the gravity of the offense where his/her interests, the rights of the victim and the needs of society are all taken into consideration by the court, under the principle of restorative justice;
(l) The right to have restriction on his/her personal liberty limited to the minimum, and where the discretion is given by law to the judge to determine whether to impose fine or imprisonment, the imposition of fine being preferred as the more appropriate penalty;
(m) In general, the right to automatic suspension of sentence;
(n) The right to probation as an alternative to imprisonment if qualified under the probation law.
(o) The right to be free from liability for perjury, concealment or misrepresentation; and,
(p) Other rights as provided for under existing laws, rules and regulations.

SECTION 210. **MINIMUM AGE OF CRIMINAL RESPONSIBILITY** - A child fifteen (15) years of age or under at the time of the commission of the offense shall be exempted from criminal liability. However, he/she shall be subjected to an appropriate intervention program for self-reformation.

A child above fifteen (15) years of age but below eighteen (18) years of age shall likewise be exempt from criminal liability and be subjected to an intervention program, unless he/she had acted with discernment, in which case, such child shall be subjected to the appropriate proceedings in accordance with the provisions of RA 9344.

The exemption from criminal liability herein established does not include exemption from civil liability which shall be enforced in accordance with existing laws.

SECTION 211. **DIVERSION PROGRAM** - Children in conflict with the law may undergo child-appropriate process or measures of serving responsibility for an alleged offense without undergoing formal court litigation.

SECTION 212. **REHABILITATION AND REINTEGRATION** - The objective of rehabilitation and reintegration of children in conflict with the law is to provide them with interventions, approaches and strategies that will enable them to improve their social functioning with the end goal of reintegration to their families and as productive member of the communities.

(a) No child shall be received in any rehabilitation or training facility without a valid order issued by the court. The details of this order shall be recorded in a register exclusive for children in conflict with the law. No child shall be admitted in any facility where there is no such register.

(b) It is mandatory that children should be separated from adults in any training or rehabilitation facility unless they are members of the same family. Under no circumstances shall a child in conflict with the law be placed in the same confinement as adults.

(c) The rehabilitation, training or confinement area of children in conflict with the law shall provide a home environment where they can be provided with quality counselling and treatment.

(d) Female children in conflict with the law placed in institution shall be given special attention as to their personal needs and problems. They shall be handled by female doctors, correction officers and social workers, and shall be accommodated separately from male children in conflict with the law.

(e) No personnel of rehabilitation and training facilities shall handle children in conflict with the law without having undergone gender sensitivity training.

(f) Children in conflict with the law whose sentences are suspended may, upon order of the court, undergo any or a combination of disposition measures best suited to the rehabilitation and welfare of the child as provided in the Supreme Court Rule on Juveniles in Conflict with the Law.

(g) If the community-based rehabilitation is availed by a child in conflict with the law, he/she shall be released to parents, guardians, relative or any other responsible person in the community. Under the supervision and guidance of the LSWDO and in coordination with his/her parents or guardians, the child in conflict with the law shall participate in any community-based programs which shall include, but not limited to:

g.1. Competency and life skills development;
g.2. Socio-cultural and recreational activities;
g.3. Community volunteer projects;
g.4. Leadership Training;
g.5. Social Service;
g.6. Home life Service;
g.7 Health Services;
g.8 Spiritual Enrichment; or
g.9. Community and family welfare services

(h) The youth rehabilitation center shall provide a 24-hour group care, treatment and rehabilitation services under the guidance of a competent and trained staff where residents are cared for under a structured therapeutic environment with the end view of reintegrating them in their families and communities as socially functioning individuals.

SECTION 213. **LIABILITY OF PARENTS OR GUARDIANS OR ANY PERSON IN THE COMMISSION OF DELINQUENT ACTS BY THEIR CHILDREN OR WARDS** - A person whether the parent or guardian of the child or not, who knowingly or willfully, aids, causes, abets or connives with the commission by a child of a delinquency, or does any act producing, promoting, or contributing to a child's being or becoming a juvenile delinquent, shall be punished by a fine not exceeding five hundred (500) pesos or to imprisonment for a period not exceeding two years, or both such fine and imprisonment, at the discretion of the court.

SECTION 214. **CIVIL LIABILITY OF YOUTH OFFENDERS** - The civil liability for acts committed by a civilized youth in conflict with the law shall devolve upon the offender's father and, in case of his death or incapacity, upon the mother, or in case of her death or incapacity, upon the guardian. Civil liability may also be voluntarily assumed by a relative or family friend of the youthful offender.

The final release of a child because of good conduct shall not obliterate his/her civil liability for damages. Such release shall be without prejudice to the right for a writ of execution for the recovery of civil damages.

SECTION 215. **REPORT ON CONDUCT OF CHILD** - The LSWDO or its representative or duly licensed agency or individual under whose care the civilized youth in conflict with the law has been committed shall submit to the court every four months or oftener as may be required in special cases, a written report on the conduct of said youthful offender as well as the intellectual, physical, moral, social and emotional progress made by him/her.

SECTION 216. **DISMISSAL OF THE CASE** - if it is shown to the satisfaction of the court that the civilized youth in conflict with the law whose sentence has been suspended, has behaved properly and has shown his capability to be a useful member of the community, even before reaching the age of majority, upon recommendation of the Department of Social Welfare & Development (DSWD), it shall dismiss the case and order his/her final discharge.

ARTICLE 39

CHILDREN IN NEED OF SPECIAL PROTECTION

SECTION 217. **COVERAGE -** This Article shall cover the following:

(a) Abused minors;
(b) Street children; and
(c) Drug dependents

SECTION 218. **CHILD PROSTITUTION AND OTHER SEXUAL ABUSE** - Children, whether male or female, who for money, profit or any other consideration or due to coercion or influence of an adult, syndicate or group, indulge in sexual intercourse or lascivious conduct, are deemed to be children exploited in prostitution and other sexual abuse.

There is an attempt to commit child prostitution in the following situations:

(a) When any person, not being a relative of a child, is found alone with the said child inside the room or cubicle of a house, an inn, hotel, motel, pension house, apartelle or other similar establishments, vessel, vehicle or any other hidden or secluded area under circumstances which would lead a reasonable person to believe that the child is about to be exploited in prostitution and other sexual abuse; and
(b) When a person is receiving services from a child in a sauna parlor or bath, massage clinic, health club and other similar establishments.

SECTION 219. **OTHER ACTS OF ABUSE** - The following acts shall be deemed acts of neglect, abuse, cruelty or exploitation prejudicial to child's development:

(a) Hiring, employing, using, persuading or coercing a child to perform in obscene exhibitions and indecent shows, whether live or in video, or model in obscene publications or pornographic materials or to sell or distribute the said materials;
(b) Keeping or having in a person's (not related to the child within the fourth degree of consanguinity or affinity or any bond recognized by law, local custom and tradition) to accompany a minor, twelve (12) years or under or who is ten (10) years or more his junior in any public or private place, hotel, motel, beer joint, discotheque, cabaret, pension house, sauna or massage parlor, beach and/or other tourist resort or similar places; and
(c) Inducing, delivering or offering a minor to anyone not related to the child as provided for under par. (b) hereof;
(d) Using, coercing, forcing or intimidating a minor to:

d.1. Beg or use begging as a means of living;
d.2. Act as conduit or middleman in drug trafficking or pushing; or
d.3. Conduct any illegal activities.

SECTION 220. **SUPPORT SERVICES AND PROGRAMS** - The Local Government, through the LHO and LSWDO, shall implement measures that would ensure the protection and rehabilitation to prepare the abused child for full integration into the mainstream of society.

ARTICLE 40

CHILDREN IN SITUATIONS OF ARMED CONFLICT

SECTION 221. **CHILDREN AS ZONES OF PEACE** - Children are hereby declared as "Zones of Peace". It shall be the responsibility of the Local Government and all other sectors concerned to resolve armed conflicts in order to promote the goal of children as zones of peace. To attain this objective, the following policies shall be observed:

(a) Children shall not be the object of attack and shall be entitled to special respect. They shall be protected from any form of threat, assault, torture or other cruel, inhumane or degrading treatment;
(b) Children shall not be recruited to become members of the Armed Forces of the Philippines or its civilian units or other armed groups, nor be allowed to take part in the fighting, or used as guides, couriers, or spies;
(c) Delivery of basic social services such as education, primary health and emergency relief services shall be kept unhampered;
(d) The safety and protection of those who provide services including those involved in fact-finding missions from both government and non-government institutions shall be ensured. They shall not be subjected to undue harassment in the performance of their work;
(e) Public infrastructure such as schools, hospitals and rural health units shall not be utilized for military purposes such as command posts, barracks, detachments, and supply depots; and,
(f) All appropriate measures shall be taken to reunite families temporarily separated due to armed conflict.

SECTION 222. **EVACUATION OF CHILDREN DURING ARMED CONFLICT** - Children shall be given priority during evacuation as a result of armed conflict. Existing community organizations shall be tapped to look after the safety and well-being of children during evacuation operations. Measures shall be taken to ensure that children evacuated are accompanied by persons responsible for their safety and well-being.

SECTION 223. **FAMILY LIFE AND TEMPORARY SHELTER** - Whenever possible, members of the same family shall be housed in the same premises and given separate accommodation from other evacuees and provided with facilities to lead a normal family life. In places of temporary shelter, expectant and nursing mothers and children shall be given additional food in proportion to their physiological needs. Whenever feasible, children shall be given opportunities for physical exercise, sports and outdoor games.

SECTION 224. **RIGHTS OF CHILDREN ARRESTED FOR REASONS RELATED TO ARMED CONFLICT** - Any child who has been arrested for reasons related to armed conflict, either as combatant, courier, guide or spy is entitled to the following rights:

(a) Separate detention from adults except where families are accommodated as family units;
(b) Immediate free legal assistance;
(c) Immediate notice of such arrest to the parents or guardians of the child; and,
(d) Release of the child on recognizance within twenty-four (24) hours to the DSWSD or any responsible member of the community as determined by the court.

If after hearing the evidence in the proper proceedings the court should find that the aforesaid child committed the acts charged against him/her, the court shall determine the imposable penalty, including any civil liability chargeable against him/her.

However, instead of pronouncing judgment of conviction, the court shall suspend all further proceedings and shall commit such child to the custody or care of the DSWD or to any training institution operated by the Government, or duly-licensed agencies or any other responsible person, until he/she has reached eighteen (18) years of age or, for a shorter period as the court may deem proper, after considering the reports and recommendations of the DSWD or the agency or responsible individual under whose care he has been committed.

The aforesaid child shall be subject to visitation and supervision by a representative of the DSWD or any duly licensed agency or such other officer as the court may designate subject to such conditions as it may prescribe.

The aforesaid child whose sentence is suspended can appeal from the order of the court in the same manner as appeals in criminal cases.

SECTION 225. **MONITORING AND REPORTING OF CHILDREN IN SITUATIONS OF ARMED CONFLICT.** The Punong Barangay of the barangay(s) affected by the armed conflict shall submit the names of children residing in said barangay to the Local Social Welfare and Development Officer within twenty-four (24) hours from the occurrence of the armed conflict.

ARTICLE 41

PARENT EFFECTIVENESS SERVICE PROGRAM (Republic Act No. 11908)

SECTION 226. **ESTABLISHMENT OF THE PARENT EFFECTIVENESS SERVICE (PES) PROGRAM -** The Local Government of Los Baños shall establish a Parent Effectiveness Service Program to enhance the knowledge and skills of parents, guardians, and parent-substitutes in fulfilling their parental duties, thereby promoting children's rights and holistic development. The PES Program shall be implemented across all barangays, prioritizing parents or guardians of vulnerable children, including those at risk of neglect, abuse, or violence.

SECTION 227. **PROGRAM COMPONENTS -** The PES Program will encompass various modules aimed at educating parents and guardians on essential topics, including:

(a) Understanding parenting roles and responsibilities;
(b) Family dynamics and values;
(c) Challenges in parenting, including societal influences;
(d) Child development and learning techniques;
(e) Prevention of child abuse and empowerment of children's rights;
(f) Promoting positive behavior and character development;
(g) Health, nutrition, and proper healthcare for children;
(h) Home management practices;
(i) Disaster preparedness specifically for children;
(j) Supporting adolescent development and vulnerability.

SECTION 228. **IMPLEMENTATION AND CAPACITY-BUILDING -** Sessions shall be conducted by trained facilitators in coordination with local social welfare offices. The Local Government and relevant agencies, including the Department of Social Welfare and Development (DSWD) and Department of Education (DepEd), will collaborate to organize capacity-building initiatives for facilitators and develop culturally relevant modules for the community.

SECTION 229. **ADVOCACY AND AWARENESS -** Public awareness campaigns will be launched to promote the PES Program's benefits using various media platforms. Parents and guardians will be encouraged to participate in local training programs to optimize their involvement in their children's education and development.

SECTION 230. **ALLOCATION OF RESOURCES -** The Local Government of Los Baños shall allocate necessary funds from the annual budget to support the PES Program's implementation, which may include expenses related to the development of materials, training sessions, and community outreach.

SECTION 231. **MONITORING AND EVALUATION -** Efforts will be made to continuously assess the effectiveness of the PES Program through data-driven metrics, feedback from participants, and regular reporting to municipal authorities to ensure that the program adapts to the community's evolving needs and effectively fulfills its goals of empowering parents and enhancing child welfare.

ARTICLE 42

STRONGER PROTECTION AGAINST RAPE AND SEXUAL EXPLOITATION AND ABUSE (Republic Act No. 11648)

SECTION 232. **ADOPTION OF STRONGER MEASURES -** In accordance with Republic Act No. 11648, the Municipality of Los Baños shall adopt stronger measures for the protection of children against rape and sexual exploitation and abuse. This includes raising the age for determining statutory rape to involve greater responsibility and accountability for offenders.

SECTION 233. **PROTECTION AGAINST PROSTITUTION AND TRAFFICKING -** The Municipality shall prioritize the identification and protection of children engaged in prostitution and other forms of sexual exploitation, establishing a framework that allows for the prevention of child trafficking. Violators shall face severe penalties, including lengthy prison sentences, especially when the victim is under the age of sixteen (16).

SECTION 234. **EDUCATIONAL INSTITUTION RESPONSIBILITIES -** All public and private educational institutions within Los Baños are mandated to include in their training programs sessions focused on recognizing and reporting incidents of rape and sexual offenses. Additionally, the basic education curriculum developed by the Department of Education shall include age-appropriate lessons addressing children's rights and protections under this Act.

SECTION 235. **COMMUNITY AWARENESS PROGRAMS -** The Local Government shall implement community awareness programs designed to educate parents, guardians, and the general public regarding the detection and prevention of abuse, thereby creating a safer environment for all children in the Municipality of Los Baños.

SECTION 236. **SUPPORT FOR VICTIMS -** The Municipal Social Welfare and Development Office (MSWDO) shall collaborate with other local agencies and organizations to provide support, counseling, and rehabilitation programs to victims of sexual abuse and exploitation, ensuring that their needs are prioritized and addressed promptly.

SECTION 237. **MONITORING AND EVALUATION -** The Municipality commits to reviewing and monitoring the effectiveness of its policies and programs focused on the protection of children from sexual exploitation and abuse, with annual reports to be submitted to the Office of the Mayor and the Sangguniang Bayan for evaluation purposes.

ARTICLE 43

PROHIBITION OF CHILD MARRIAGE
(Republic Act No. 11596)

SECTION 238. **DECLARATION OF POLICY -** The Local Government of Los Baños reaffirms its commitment to protecting and promoting the welfare of children by strictly prohibiting child marriage in accordance with Republic Act No. 11596. The municipality recognizes the importance of safeguarding children's rights, ensuring their physical, moral, and social well-being, and advancing women's empowerment by eliminating discriminatory structures and practices.

SECTION 239. **UNLAWFUL ACTS -** The following acts are strictly prohibited:

(a) Facilitation of Child Marriage: Any individual or entity found facilitating, arranging, or enforcing a child marriage—whether by coercion, deceit, or support—shall be penalized with imprisonment and fines. Increased penalties shall apply for parents or guardians who are involved in such acts.

(b) Solemnization of Child Marriage: Officiating a child marriage shall incur severe penalties, including dismissal from public service for public officers.
(c) Cohabitation with a Child: Any adult cohabiting with a child shall face significant penalties.

SECTION 240. **LEGAL CONSEQUENCES** - Any child marriage is deemed void ab initio, ensuring that such unions do not confer any legal rights or responsibilities. Actions for annulment due to child marriage shall not be subject to prescription.

SECTION 241. **ENABLING SOCIAL ENVIRONMENT** - The Local Government shall create an enabling environment to combat child marriage through:

(a) Awareness campaigns and education programs about the consequences of child marriage.
(b) Programs that empower children, emphasizing education and economic support to discourage marriage at a young age.

SECTION 242. **IMPLEMENTING AGENCIES** - The enforcement and implementation of this Article shall be led by the Municipal Department of Social Welfare and Development (DSWD), in collaboration with other local agencies, community organizations, and stakeholders.

SECTION 243. **PUBLIC CRIME** - Any violation of this Article is considered a public crime, allowing any concerned citizen to initiate legal action.

SECTION 244. **MONITORING AND REPORTING** - Regular monitoring of the provisions of this Article shall be conducted to ensure adherence to the prohibition of child marriage, and annual reports shall be drafted to assess the measures taken and their effectiveness.

ARTICLE 44

DOMESTIC ADMINISTRATIVE ADOPTION AND ALTERNATIVE CHILD CARE (Republic Act No. 11642)

SECTION 245. The Local Government of Los Baños hereby adopts the Domestic Administrative Adoption and Alternative Child Care in accordance with Republic Act No.11642.

SECTION 256. **ISSUANCE OF CERTIFICATES** - Children legally available for adoption shall be issued a Certificate Declaring a Child Legally Available for Adoption (CDCLAA) by the National Authority for Child Care (NACC) after fulfillment of necessary legal processes, focusing on expediting adoption procedures and minimizing costs.

SECTION 247. **COUNSELING SERVICES** - The Local Government shall ensure that biological parents receive suitable counseling before and after the adoption process to prevent hasty decisions regarding the relinquishment of parental rights.

SECTION 248. **ADOPTIVE PARENT ELIGIBILITY - Filipino** citizens aged at least 25, who possess full civil capacity, and meet the required moral and psychological standards, shall be eligible to adopt children. The Local Government will work with child-placing agencies to confirm adoptive parents' qualifications.

SECTION 249. **PROTECTION AND SUPPORT FOR ADOPTIVE PARENTS -** The Municipality shall implement measures to safeguard adoptive parents' rights and provide them with necessary support during the adoption process, ensuring that their legal authority is not disturbed once adoption is finalized.

SECTION 250. **ANNUAL REPORTING AND MONITORING -** The Municipal Social Welfare Development Office (MSWDO) shall collaborate with the NACC in the monitoring and evaluation of all adoption cases within Los Baños. This Office will produce an annual report detailing adoption progress and ensuring compliance with established standards.

SECTION 251. **PUBLIC AWARENESS AND EDUCATION -** The Local Government, through the MSWDO, shall conduct public information campaigns to promote a positive view of adoption and alternative child care, aiming to reduce stigma and encourage community engagement.

SECTION 252. **ENFORCEMENT OF CONFIDENTIALITY -** Strict confidentiality shall be maintained concerning all adoption records and processes, in compliance with existing privacy laws, to protect the identities of all individuals involved.

SECTION 253. **MUNICIPAL RESOURCES AND BUDGET -** The Local Government of Los Baños shall allocate necessary funds and resources to effectively implement the provisions of this Article, including training for social workers and support for adoptive families.

ARTICLE 45

EARLY CHILDHOOD CARE AND DEVELOPMENT (Republic Act No. 10410)

SECTION 254. **DECLARATION OF POLICY -** The Local Government of Los Baños recognizes the critical importance of early childhood years from zero (0) to eight (8) years as foundational to educational development. Consequently, the Municipality shall promote the rights of children to survival, holistic development, and special protection while supporting parents as primary caregivers. This commitment aligns with the provisions of Republic Act No. 10410, also known as the "Early Years Act of 2013."

SECTION 255. **INTEGRATED EARLY CHILDHOOD PROGRAMS -** The Municipality shall institutionalize a holistic ECCD system that encompasses center-based (e.g., day care services) and home-based programs, ensuring that all services are developmentally appropriate and culturally relevant to the community.

SECTION 256. **SUPPORT FOR ECCD SERVICE PROVIDERS** - The Local Government shall encourage the professionalization of ECCD service providers and establish training programs to enhance their skills, comply with national and local accreditation standards, and better serve the community.

SECTION 257. **ALLOCATION OF FUNDS** - The Municipality shall prioritize funding for ECCD initiatives, utilizing local resources and collaborative funding from national agencies such as the Department of Education, the Department of Health, and the Department of Social Welfare and Development, to ensure the effective implementation of early childhood programs.

SECTION 258. **COMMUNITY INVOLVEMENT AND ADVOCACY** - The Local Government shall mobilize community stakeholders—parents, local organizations, and academic institutions—to actively participate in ECCD programs, promoting awareness and advocating for the importance of early childhood education and care.

SECTION 259. **MONITORING AND REPORTING** - The Local Government shall regularly evaluate the effectiveness of ECCD programs through systematic data collection and reporting mechanisms, ensuring accountability and continuous improvement of services offered to children and families.

SECTION 260. **COORDINATION WITH NATIONAL POLICIES** - The Local Government of Los Baños will align its ECCD initiatives with national policies and frameworks set forth by the ECCD Council, ensuring consistency in service delivery and quality standards.

SECTION 261. **APPROPRIATIONS** - Initial funding for implementing this article shall be sourced from the Local Government's annual budget, with efforts made to identify additional funding opportunities from public and private partnerships.

ARTICLE 46

RECOGNITION AND PROTECTION OF FOUNDLINGS (Republic Act No. 11767)

SECTION 262. Pursuant to Republic Act No. 11767, also known as the "Foundling Recognition and Protection Act", the Local Government of Los Baños shall recognize and protect the rights of foundlings, who are deserted or abandoned children with unknown parents, and provide them with assistance, including proper care, nutrition, and special protection from all forms of neglect, abuse, cruelty, exploitation, and other conditions prejudicial to their development.

SECTION 263. **CITIZENSHIP STATUS OF FOUNDLINGS** - A foundling found in the Municipality of Los Baños is presumed to be a natural-born Filipino citizen, regardless of the status or circumstances of birth, and shall be accorded with rights and protections equivalent to those of natural-born citizens.

SECTION 264. **RESPONSIBILITIES OF THE MUNICIPAL SOCIAL WELFARE AND DEVELOPMENT OFFICE (MSWDO) -** The MSWDO shall be responsible for receiving reports of foundlings and coordinating with the National Authority for Child Care (NACC) through the Regional Alternative Child Care Office (RACCO) for the provision of appropriate care and services in line with the foundling's needs and best interest.

SECTION 265. **FOSTER CARE ASSESSMENT -**The LSWDO shall prioritize the assessment of finders who apply to become foster parents of the foundling, in accordance with the qualifications under Republic Act No. 10165, or the "Foster Care Act of 2012".

SECTION 266. **RIGHTS TO GOVERNMENT PROGRAMS AND SERVICES -** The Local Government of Los Baños shall ensure that foundlings are provided with support services, including access to education, healthcare, and other social services, and shall penalize acts inimical to their welfare.

SECTION 267. **RECORD-KEEPING AND MONITORING -** The MSWDO shall maintain a record of all foundlings reported in the municipality, including their circumstances of discovery, and shall ensure that their rights and interests are protected and promoted. The MSWDO will conduct regular monitoring of the welfare and status of foundlings to facilitate their integration into society and to provide continued support where necessary.

ARTICLE 47

SPECIAL PROTECTION OF CHILD PASSENGERS IN MOTOR VEHICLES (Republic Act No. 11229)

SECTION 268. The Local Government of Los Baños shall ensure the safety and welfare of child passengers in motor vehicles, recognizing their right to protection from traffic-related dangers.

SECTION 269. **MANDATORY USE OF CHILD RESTRAINT SYSTEMS IN MOTOR VEHICLES -** It shall be unlawful for any driver to transport a child aged twelve (12) years or younger in a motor vehicle without properly securing them in an approved child restraint system, unless the child is at least one hundred fifty (150) centimeters tall.

SECTION 270. **CHILD PASSENGERS IN REAR SEATS -** Children twelve (12) years and below are prohibited from sitting in the front seat of a vehicle while the engine is running, unless they meet the height requirement and are secured with a seatbelt.

SECTION 271. **PUBLIC INFORMATION CAMPAIGN -** The Local Government of Los Baños, in coordination with relevant agencies, shall conduct regular information campaigns about child passenger safety, proper use of child restraint systems, and the legal obligations of drivers.

ARTICLE 48

OBSERVANCE OF LINGGO NG KABATAAN

SECTION 272. The Linggo ng Kabataan shall be observed and celebrated in Los Baños during the last week of November or first week of December, whichever is convenient and acceptable to school officials, every year.

SECTION 273. In compliance with Book III, Title I, Chapter 10 of RA 7160, there shall be youth officials who shall occupy the following offices/positions:

(a) Mayor;
(b) Vice-Mayor;
(c) Ten (10) Local Sanggunian Members (Councilors);
(d) Department Heads such as:
    1. Secretary to the Sanggunian;
    2. Human Resource and Management Officer;
    3. Treasurer;
    4. Accountant;
    5. Budget Officer;
    6. Assessor;
    7. Local Civil Registrar;
    8. Local Social Welfare & Development Officer;
    9. Local Planning & Development Coordinator;
    10. Engineer;
    11. Local Health Officer;
    12. Agriculturist;
    13. PNP Chief; and
    14. Fire Chief

SECTION 274. The youth officials, who shall serve for a period of one (1) week, must be nominated by their respective school head based on the following qualifications:

(a) Must have a general average grade of 88%;
(b) Must have strong leadership capabilities;
(c) Must be currently enrolled in any secondary school within Los Baños;
(d) Must be a Los Baños resident;
(e) Must be of good moral character;
(f) Must be part of the Top 5 performing Students; and
(g) The out of school youth must be nominated by the Barangay Sanggunian.

SECTION 275. Every public, private secondary schools and senior high schools in Los Baños shall have five (5) nominees for the program. Nomination forms shall be forwarded by the Office of the Secretary to the Sanggunian, and shall likewise be responsible in collating all accomplished forms together with the documentary requirements.

SECTION 276. The student-nominee shall submit a certified photocopy of his/her latest report card and a certification of Good Moral Character from the School Head and the Punong Barangay of his/her place of residence.

SECTION 277. The student-nominee shall meet one week before the start of the program to elect among themselves the counterpart of the elective and appointive officials and agency heads.

SECTION 278. The student-nominee to the particular office shall immediately report to the respective office and shall be required to acquaint himself/herself to the nature of the office for one day prior to assumption of office.

SECTION 279. All youth officials shall be under the direct supervision and guidance of their counterparts. All communication made by and for the office shall be relayed by the youth official to the regular office head prior to implementation.

SECTION 280. A three-man committee shall be created to monitor the proper implementation of the program. It shall be composed of the following:

(a) Ex-Officio Local Sanggunian Member/President, Sangguniang Kabataan Federation of Los Baños/ Chairman, Local Sangguniang Committee on Youth & Sports Development;
(b) Chairman, Local Sanggunian Committee on Education; and
(c) Chairman, Local Sanggunian Committee on Rules.

SECTION 281. All youth officials shall report for work from 8:00 am to 5:00 pm, but shall be required to reflect their official time in and out in the Daily Time Record to be prepared by the Human Resource and Development Office.

SECTION 282. At the end of the term, the youth officials shall submit an official report regarding their transactions for the whole week and shall recommend measures that may improve the services in their particular office.

SECTION 283. All youth officials shall receive a Plaque of Appreciation from the Local Government of Los Baños and honoraria to be determined by the Local Chief Executive. All participating schools shall likewise receive Plaques of Appreciation

CHAPTER V

REGULATORY MEASURES

ARTICLE 49

IMPLEMENTATION OF THE PROVISIONS OF RA 9208 (Anti-Trafficking in Persons Act of 2003)

SECTION 284. The Local Government of Los Baños shall undertake the following programs, projects and activities:

(a) Implement the mandatory services enumerated in Section 2.3 of RA 9208;
(b) Develop and disseminate information materials on anti-trafficking;
(c) Train LGU personnel involved in programs against trafficking in persons;

(d) Establish a system of referral, monitoring and reporting of trafficking cases using the prescribed standard reporting format;
(e) Conduct inspection, in coordination with proper authorities, of houses, buildings or establishment suspected of being used for trafficking activities; and
(f) Institute a reward scheme for those who have provided any information that leads to the suppression or prevention of trafficking and apprehension of offenders.

SECTION 285. **CREATION OF THE LOCAL COMMITTEE ON ANTI-TRAFFICKING** - There shall be a Local Committee on Anti-Trafficking, with the Local Chief Executive as the Chairperson, the Chairperson of the Local Sanggunian Committee on Women and Family as the Vice-Chairperson and the following members, some whom are local counterparts of the national government agency – members of the Inter-Agency Council Against Trafficking (IACAT) enumerated in Section 20 of RA 9208:

(a) Presiding Judge, Municipal/City Trial Court;
(b) Local Social Welfare and Development Officer;
(c) Public Employment Service Officer;
(d) Chief of Police, Los Baños Philippine National Police (PNP);
(e) Local Government Operations Officer, Department of Interior and Local Government (DILG);
(f) District Supervisor, Department of Education;
(g) Representative of at least two (2) accredited NGOs/POs; and
(h) At least two (2) Barangay Human Rights Action Officer (BHRAO)

SECTION 286. **FUNCTIONS OF THE LOCAL COMMITTEE ON ANTI-TRAFFICKING** - The Committee shall have the following functions:

(a) Coordinate local government programs, projects and activities relative to campaign against trafficking;
(b) Propose and recommend policies and regulations on anti-trafficking to the Sangguniang Bayan;
(c) Monitor and review policies, programs, projects and activities on anti-trafficking;
(d) Coordinate with local offices of the national agencies in relation to their respective responsibilities pursuant of Section 16 of RA 9208; and
(e) Perform other related duties and responsibilities.

ARTICLE 50

CURFEW HOURS FOR MINORS
(Ordinance No. 2011-1074)

SECTION 287. **IMPOSITION** - There is hereby imposed curfew hour from 10:00 pm to 4:00 am against minor within the territorial jurisdiction of Los Baños.

SECTION 288. **SCOPE AND COVERAGE** - This imposition shall apply to all people below eighteen (18) years of age, whether resident or non-resident of Los Baños.

SECTION 289. **EXCEPTIONS** - The preceding section shall not be applicable in the following circumstances:

(a) When the minor is accompanied by his parent or guardian;
(b) Legally employed as certified by the employer or the Department of Labor and Employment (DOLE) and duly noted by the Punong Barangay of his place of residence;
(c) Inside a motor vehicle that is in transit;
(d) During emergency errands for the family;
(e) When the minor is five (5) meters away from his residence or immediately outside therefrom;
(f) When the minor is attending an official educational, religious or community organized activity or those sponsored by accredited non-government organizations;
(g) When for justifiable reasons, minor was not able to reach his/her residence within the prescribed curfew hour; and
(h) Elected SK Officials performing emergency and related official functions.

SECTION 290. The Local Chief Executive is hereby granted the authority to suspend the curfew regulations on the following occasions:

(a) Christmas: December 24 – 25;
(b) New Year: December 31 – January 1;
(c) Holy Week: Holy Wednesday – Easter Sunday;
(d) Town Fiesta: December 7 – 8;
(e) All Saint's Day: November 1; and
(f) Other special occasion and/or local festivities

SECTION 291. Authority is likewise granted to the Punong Barangay to suspend the implementation of this ordinance during the celebration of Barangay Fiesta and/or special occasions in the barangay where permit is required.

SECTION 292. All civilized youth in conflict with the law rendering community service as called for by this ordinance shall be under supervision of PNP Los Baños and Municipal Social Welfare and Development Office.

SECTION 293. All Punong Barangays, Barangay Kagawads and Barangay Tanods/Police are empowered to strictly implement this ordinance in their respective barangays.

ARTICLE 51

REGULATING THE USE, SALE, DISTRIBUTION AND ADVERTISEMENT OF CIGARETTES AND OTHER TOBACCO PRODUCTS, IN CERTAIN PLACES (Ordinance No. 2023-2380)

SECTION 294. **PROHIBITED ACTS** - The following acts are declared unlawful and prohibited by this Ordinance:

(a) Smoking, vaping and using tobacco products in the presence of minors;

(b) Possession, use, sale, distribution or purchase of cigarettes, electronic cigarettes, heated tobacco products, other tobacco products and/or their components by minors;

(c) Selling, distributing, purchasing, marketing, and promoting tobacco products or electronic cigarettes, and heated tobacco products and/or its components to minors;

(d) Ordering, instructing, or compelling a minor to use, light up, buy, sell, distribute, deliver, advertise or promote tobacco products, electronic cigarette, heated tobacco products or their components;

(e) Selling and distribution of electronic cigarette refills or pods that are not tamper resistant and child resistant compliant with prevailing international standards;

(f) Failure on the part of retailers, sellers, and distributors to require the presentation of a valid government issued identification card from buyers and recipients of tobacco products;

(g) Selling, distributing, advertising, promotions, sponsorships and product testing of tobacco products, electronic cigarette, and heated tobacco products and/or their components within 100 meters from any perimeter of a school, public playground, other facility frequented by minors, and government offices delivering services on education, health and social welfare and development;

SECTION 295. **DUTIES AND OBLIGATIONS OF PERSONS-IN CHARGE** - The following are the duties and obligations of persons-in-charge of schools, public playgrounds or other facilities frequented by minors and point-of-sale establishments:

(a) Prominently post and display the "No Smoking/No Vaping" symbol, in the locations most visible to the public in the areas where smoking and vaping is prohibited. At the very least, the "No Smoking/No Vaping" signage must be posted at the entrance to the area, which shall be at least [8 x 11 inches] in size, where the symbol/s shall occupy no less than 60% of the signage. The remaining 40% of the signage shall show the pertinent information/precautionary statement, as follows:

STRICTLY NO SMOKING AND NO VAPING
As per ORDINANCE NO. _____
Violators can be fined up to _____

Report violations to [HOTLINE Number/Online Contact Info]

As for the Designated Smoking/Vaping Area (DSA/DVA), prominently display the following elements in the signage:

*"**DESIGNATED SMOKING/VAPING AREA**" or "**SMOKING/VAPING AREA**" "Persons below 18 are not allowed within these premises"*

[Place Graphic/Picture-Based Health Warning on the effects or health risks of tobacco, electronic cigarette, and heated tobacco product use within the signage using latest DOH Graphic Health Warning templates]

[if available, place the number of Smoking Cessation Hotline/Online Contact Info]

(b) For persons-in-charge of schools, public playgrounds, or other facilities frequented by the youth and/or minors, heath facilities, and government offices delivering services on education, health and social welfare and development, post a signage with a minimum size of 18 inches by 24 inches with the following statement in a clear and conspicuous manner:

SELLING, DISTRIBUTING, ADVERTISING AND PROMOTIONS OF CIGARETTES, ELECTRONIC CIGARETTES, HEATED TOBACCO, AND OTHER TOBACCO PRODUCTS, AND/OR THEIR COMPONENTS IS PROHIBITED WITHIN 100 METERS FROM THE PERIMETER OF THIS ESTABLISHMENT/FACILITY

(c) For persons-in-charge of schools, public playgrounds or other facilities frequented by minors, health facilities, and government offices delivering services on education, health and social welfare and development to report to the Smoke/Vape-Free Task Force any sale, use, distribution, advertisement, or promotion of cigarettes, electronic cigarettes, heated tobacco products, other tobacco products and/or any of their components conducted within 100 meters from the perimeter of their establishments or offices;

(d) For persons-in-charge of establishments intending to sell, distribute, advertise, promote cigarettes/electronic cigarette, heated tobacco products, and other tobacco products and/or any of their components in retail or wholesale to secure a business permit and license to sell from the LGUs' Business Permits and Licensing Office, and shall comply with all the licenses and requirements of other regulatory agencies;

(e) For persons-in-charge of licensed point-of-sale establishments, post the following signage with a minimum size of 8 inches by 11 inches containing the latest Department of Health GHW templates, in a clear and conspicuous manner:

SALE/DISTRIBUTION, OR PURCHASE OF CIGARETTES AND OTHER TOBACCO PRODUCTS AND/OR THEIR COMPONENTS TO OR FROM MINORS IS UNLAWFUL

SECTION 296. **PERSONS LIABLE** - The following persons shall be liable under this Ordinance:

(a) Any person or entity who commits any of the prohibited acts stated in Section 294 hereof;

(b) Persons-in-charge who knowingly allow, encourage, abet, authorize or tolerate the prohibited acts enumerated in Section 294, or who otherwise fail to fulfill the duties and obligations enumerated in Section 295 hereof;

(c) If the violator is a minor, the apprehending officer from the Task Force shall follow the procedure provided under Section 321;

ARTICLE 52

PROHIBITING STORES AND STOREOWNERS AND OTHER BUSINESS ESTABLISHMENTS FROM SELLING LIQUORS TO MINORS

SECTION 297. It shall be unlawful for all stores and storeowners and other business establishments operating within the territorial jurisdiction of Los Baños to sell liquors to minors.

SECTION 298. Storeowners shall be required to post a warning sign in their places of business which must read as follows:

SALE/DISTRIBUTION OF LIQUOR
TO MINORS IS UNLAWFUL

Failure to post the warning sign shall be a ground for the cancellation of business permit.

SECTION 299. Only individuals of majority age shall be allowed to buy liquors from stores operating within Los Baños. Parents are strongly discouraged from instructing their children to purchase alcoholic beverages on their behalf

SECTION 300. Storeowners and other personnel working in the aforementioned business establishments shall require a valid identification card to a suspected minor before selling liquors.

SECTION 301. All police personnel, barangay tanods and school officials are hereby authorized to apprehend violators of any provision of this article. All apprehended violators shall be turned over to the local police unit for proper documentation and handling.

ARTICLE 53

PROHIBITING THE OWNER OR OPERATOR OF VIDEO GAMES AND COMPUTER TAPES, DISC AND SIMILAR SOFTWARES AND EQUIPMENT TO ACCEPT CHILDREN BELOW FIFTEEN (15) YEARS OLD TO PLAY DURING SCHOOL HOURS FROM 7:00 AM TO 5:00 PM (Ordinance No. 2002-113)

SECTION 302. No licensed owner or operator of video games, computer tapes, discs, and similar software and equipment (used for games and amusement that require active participation) shall allow children under eighteen (18) years of age to play during school hours from 7:00 am to 5:00 pm within Los Baños, except on Saturdays, Sundays, and Holidays.

ARTICLE 54

AGE REQUIREMENT FOR DRIVERS OF TRICYCLE-FOR-HIRE (Ordinance No. 2011-1082)

SECTION 303. Drivers of motorized tricycles must be at least eighteen (18) years old. Operators shall employ only drivers of legal age duly licensed by the LTO (Land Transportation Office) for tricycles. Drivers of tricycle-for-hire units caught to be a "minor" shall be the liability of the owner/operator.

ARTICLE 55

AGE REQUIREMENT FOR DRIVERS OF PEDICAB-FOR-HIRE (Ordinance No. 2012-1161)

SECTION 304. Drivers of pedicab-for-hire (padyak) must be at least eighteen (18) years old. Drivers of pedicab-for-hire units caught to be a "minor" shall be the liability of the owner/operator.

ARTICLE 56

AGE REQUIREMENT FOR DRIVERS OF TROLLEY-FOR-HIRE

SECTION 305. Drivers of trolley-for-hire must be at least eighteen (18) years old. Drivers of trolley-for-hire units caught to be a "minor" shall be the liability of the owner/operator.

ARTICLE 57

BAN OF CHILDREN IN BENEFIT DANCES AND SIMILAR ACTIVITIES

SECTION 306. Children are banned to participate during benefit dances and other similar activities such as foam parties, bikini open's discos and other similar performances. Any person caught promoting such act shall be punished after due processing by the court of justice having jurisdiction thereof.

SECTION 307. Their participation in culturally relevant activities shall be promoted, provided the child is under responsible adult supervision.

SECTION 308. School-based activities that are not exploitative of children are not included in this provision.

ARTICLE 58

NO ADMITTANCE OF CHILDREN IN BARS, CLUBS OR SIMILAR ESTABLISHMENT

SECTION 309. No children shall be admitted in any bar, club or any similar establishments which sell liquors. However, children between 13-17 years may be allowed entry to said establishments if accompanied by their parents, adult relatives and other responsible others.

SECTION 310. Proof of ages shall be required from the parents or guardians before children aged 13 but below 18 may be allowed entrance.

SECTION 311. There shall be a Task Force created in the municipality which shall be mandated to conduct periodic monitoring at least twice a year of bars, clubs and other similar establishments for the purpose of ensuring compliance of this provision. A report shall be submitted by the secretariat of the said Task Force to the Municipal Council for the Protection of children (MCPC)

ARTICLE 59

CONTROL ON MINOR'S ENTRY TO HOTELS, MOTELS AND LODGING HOUSES

SECTION 312. Minors are prohibited to check-in in hotels, motels and lodging houses within the municipality except when accompanied by parent/guardian who is obliged to show proof of filial relationship between the latter and the through presentation of IDs, document or other available means establishing filial relationship.

ARTICLE 60

PROHIBITION OF EARLY, FORCED AND ARRANGED UNION

SECTION 313. Informal or customary union or live-in arrangement between an adult and a child or between two children is prohibited. Existing penal sanctions be imposed on adults involved in these unions

CHAPTER VI

FINAL PROVISIONS

ARTICLE 61

PENAL PROVISIONS

SECTION 314. All violations relative to the rights of children and the youth shall be penalized in accordance with the penal provisions of RA 9208 (Anti-Trafficking Act of 2003), RA 7658 (Act Prohibiting Employment of Children Below Fifteen Years of Age in Public and Private Undertakings), RA 7610 (Special Protection of Children Against Abuse, Exploitation and Discrimination Act) and PD No. 603 (Child and Youth Welfare Code).

SECTION 315. Violators of the provisions under Article 36 shall be penalized as follows:

(a) Individuals guilty of acts such as catcalling, offensive remarks, or unwanted physical contact shall be subject to fines and potential community service as outlined in the Safe Spaces Act.
(b) The Local Government of Los Baños shall also ensure disciplinary measures for employers and institutions failing to comply with regulations against gender-based sexual harassment.

SECTION 316. Violators of the provisions under Article 37, aimed at preventing online sexual abuse of children or the distribution and possession of CSAEM shall be subject to strict penalties, including possible life imprisonment and substantial fines, in accordance with Republic Act No. 11930.

SECTION 317. Violators of the provisions on child restraint systems under Article 47 shall be meted with the following penalties:

Any driver in violation of Section 269 and 270 shall be fined as follows:

(a) FIRST OFFENSE - One Thousand Pesos (P 1,000.00);
(b) SECOND OFFENSE - One Thousand Five Hundred Pesos (P 1,500.00);
(c) THIRD OFFENSE - Two Thousand Five Hundred Pesos (P 2,500.00) plus suspension of the driver's license for one year;

Manufacturers, distributors, and sellers of substandard restraint systems shall face fines ranging from fifty thousand pesos (P50,000) to one hundred thousand pesos (P100,000) per violation, in accordance with RA No. 11229.

SECTION 318. Violators of the provisions of Article 50 imposing curfew hours on minors shall be meted with the following penalties:

(a) FIRST OFFENSE – admonition and warning;
(b) SECOND OFFENSE – summon parents and reprimand with fine of Five Hundred Pesos (P500.00) or two (2) hours of community service;

(c) THIRD OFFENSE – referral of minors and parents to LSWDO for appropriate counselling with fine of One Thousand Pesos (P1,000.00) or four (4) hours of community service with stern warning; and

(d) FOURTH and SUCCEEDING OFFENSES – commitment to LSWDO for custody and rehabilitation under which the concerned minor may be released from custody at the sound discretion of the office.

SECTION 319. Violators of the provisions under Article 51 shall be meted with the following penalties:

(a) Violations of Section 294 (a):

FIRST OFFENSE – Fine of One Thousand Pesos (P 1,000.00) or 2 days community service

SECOND OFFENSE – Fine of One Thousand Five Hundred Pesos (P 1,500.00) or 4 days community service

THIRD AND SUBSEQUENT OFFENSES – Fine of Two Thousand Five Hundred Pesos (P 2,500.00) or 5 days community service

(b) Violations of Section 294 (b to g) and Section 295 (a to e)

FIRST OFFENSE – Fine of One Thousand Pesos (P 1,000.00) or 3 days community service

SECOND OFFENSE – Fine of One Thousand Five Hundred Pesos (P 1,500.00) or 4 days community service

THIRD AND SUBSEQUENT OFFENSES – Fine of Two Thousand Five Hundred Pesos (P 2,500.00) or imprisonment for a period not exceeding 6 months, or both at the discretion of the court.

Suspension or revocation of business license or permit may be prescribed (in case of a business entity or establishment), if applicable.

(c) Community Service. If a violator is unable to pay the penalties imposed, he or she may choose to render community service within the municipality. For purposes of this section, community service is defined as any actual physical activity which indicates civic consciousness and is intended toward the improvement of a public work or promotion of a public service.

(d) Revocation or Suspension of Business Permits and License to Sell. The business permit and license to sell cigarettes, electronic cigarette, heated tobacco products, and other tobacco products or Certificate of Public Convenience of erring establishments and operators shall be suspended until the fines are settled and requirements of the Municipal Health Office, Building/Engineering Office, Business Permits and Licensing Office and other appropriate regulatory agencies are complied.

(e) If the violator is a minor, he or she must be turned over for dispensation of appropriate action to the nearest Social Welfare and Development Officer or its appointed designates, subject to RA No. 9344 (Juvenile Justice and Welfare Law), as amended, and/or to the school authorities at the school where the violator is enrolled, and/or to the Barangay Office where the violator is a resident, and where the parents or guardians may be called.

SECOND 320. Stores, storeowners and other business establishments selling liquors to minors, as provided for under Article 52, Section 297, shall be meted with the following penalties:

(a) FIRST OFFENSE – a fine of One Thousand Pesos (P1,000.00);
(b) SECOND OFFENSE – a fine of One Thousand Five Hundred Pesos (P1,500.00); and
(c) THIRD and SUBSEQUENT OFFENSES – a fine of Two Thousand Pesos (P2, 000.00), or imprisonment for a period of not exceeding six (6) months, or both at the discretion of the court; or revocation of business license or permit if the violator is a business entity or establishment.

SECTION 321. Stores, storeowners and other business establishments who fail to post the warning sign, as provided for under Article 52, Section 298, shall be meted with the following penalties:

(a) FIRST OFFENSE – a fine of One Thousand Pesos (P1,000.00);
(b) SECOND OFFENSE – a fine of One Thousand Five Hundred Pesos (P1,500.00); and
(c) THIRD AND SUBSEQUENT OFFENSES – a fine of Two Thousand Pesos (P2, 000.00), or imprisonment for a period of not exceeding six (6) months, or both at the discretion of the court; or revocation of business license or permit if the violator is a business entity or establishment.

SECTION 322. Persons who will be caught violating Article 53, Section 302 shall be meted with the following penalties.

(a) FIRST OFFENSE – a fine of Three Hundred Pesos (P300.00);
(b) SECOND OFFENSE – a fine of Five Hundred Pesos (P500.00);
(c) THIRD OFFENSE – a fine of Seven Hundred Pesos (P700.00); and
(d) FOURTH OFFENSE - a fine of Two Thousand Five Hundred Pesos (P2, 500.00).

SECTION 323. Owners/Operators of tricycle-for-hire whose driver is caught to be below eighteen (18) years old shall be meted with a fine of One Hundred Fifty Pesos (P150.00).

SECTIOPN 324. Owners/Operators of pedicab-for-hire (padyak) whose driver is caught to be below eighteen (18) years old shall be meted with a fine of One Hundred Fifty Pesos (P150.00).

SECTION 325. Owners/Operators of trolley-for-hire whose driver is caught to be below eighteen (18) years old shall be meted with a fine of One Hundred Fifty Pesos (P150.00).

ARTICLE 61

FINAL PROVISIONS

SECTION 326. **REPEALING CLAUSE** - All ordinances, rules and regulations or parts not consistent with any provision of this ordinance are hereby repealed, amended or modified accordingly.

SECTION 327. **SEPARABILITY CLAUSE** - If, for any reasons, any part or provision of this ordinance shall be declared unconstitutional or invalid by the court, or suspended or revoked by competent authorities, other parts or the provisions thereof which are not affected thereby shall continue to be full force and effect.

SECTION 328. **EFFECTIVITY** - This ordinance shall take effect upon compliance with the posting/publication requirements of the Local Government Code.

ENACTED : February 17, 2025

I HEREBY CERTIFY to the correctness of the above-quoted Ordinance.

DONA T. ALBORIDA-DIZON
Secretary to the Sangguniang Bayan

CERTIFIED ENACTED:

HON. MARLOPJ A. ALIPON, REE, RMP, MPA
Municipal Councilor/Temporary Presiding Officer

APPROVED:

HON. ANTHONY F. GENUINO
Municipal Mayor